

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

1 76

2. CONTRACT NUMBER

3. SOLICITATION NUMBER

N6264926RL004

4. TYPE OF SOLICITATION

☐ SEALED BID (IFB) INVITATION FOR BID☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL

5. DATE ISSUED

6. REQUISITION/PURCHASE NUMBER

7. ISSUED BY

CODE

N62649

NAVSUP FLT LOG CTR YOKOSUKA
PSC 473 BOX 11, FPO AP 96349-1500
FPO, AP 96349-1500
UNITED STATES
Hipolito Ferrer, Email: hipolito.p.ferrer.civ@us.navy.mil Telephone: 6567512271

8. ADDRESS OFFER TO (If other than item 7)

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ Email: Hipolito.p.ferrer.civ@us.navy.mil until 11:00 AM local time 08 May 2026
(Hour) (Date)**CAUTION** - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.10. FOR INFORMATION CALL:  A. NAME **Hipolito Ferrer** B. TELEPHONE (NO COLLECT CALLS) AREA CODE 656 NUMBER 751-2271 EXTENSION C. EMAIL ADDRESS hipolito.p.ferrer.civ@us.navy.mil**11. TABLE OF CONTENTS**

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OFFER (Must be fully completed by offeror)**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8) 	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified) 	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable**STANDARD FORM 33 (REV. 12/2022)**
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

USS MIGUEL KEITH (EBS-5) MID-TERM AVAILABILITY

USS MIGUEL KEITH (ESB-5) Mid-Term Availability (MTA)

1. USS MIGUEL KEITH (ESB-5): NAVSUP Fleet Logistics Center Yokosuka (NAVSUP FLCY), Site Singapore has a new requirement in support of the USS MIGUEL KEITH (EB-5). The repair and maintenance package of work items are included as SSU 27-001.
2. PERIOD OF PERFORMANCE: 26 October 2026 - 10 December 2026 (11-26 December 2026 with option)
3. PLACE OF PERFORMANCE: Availability performance shall be in Thailand or Singapore only.
4. Offer: Offerors must provide all information required by this solicitation no later than 8 May 2026 at 11:00 AM Singapore Standard Time.
5. WORK ITEM INFORMATION:
 - a. Any work item price based on an estimated quantity/scope will be balanced at the completion of the availability via a contract modification.
 - b. References in the Work Items will be provided to offerors via DoD Safe (a web-based tool that provides users the capability to securely send and receive large files, including files that are too large to be transmitted via email.) Please email request for references to: hipolito.p.ferrer.civ@us.navy.mil, Contract Specialist.
6. Award of a job order resulting from this solicitation is restricted to firms, which possess a current Master Ship Repair Agreement (MSRA)/Agreement of Boat Repair (ABR) and is restricted to firms which have a current updated registration in System for Awards Management. Firms with inactive registration will not be considered for award.

MSRA/ABR Number: _____

Firms who do not possess an MSRA or ABR are ineligible for award unless adequate time exists to permit the Navy to perform an assessment of their MSRA/ABR application and to execute the applicable MSRA/ABR without impacting the vessel's availability dates.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

NOTE A: FIXED SHIP REPAIR LABOR AND MATERIAL BURDEN RATES FOR GROWTH AND NEW WORK

1. The Contractor's material handling rate will be used for negotiating growth and new work to be performed under this Contract. The labor rate and material handling rate identified in Attachment J-3 (Pricing Workbook). The Contractor agrees that the number of hours included in its price proposal submitted in response to CCOs, and RCCs for SRF Ship, shall include only direct production hours. For these purposes, direct production hours are for skilled labor at the journeyman level expended in direct production including but not limited to the following functions:

Abrasive cleaning/blasting

Fire Watch

Welding

Burning

Brazing

Carpentry

Machinists (inside and outside)

Electrical Work

Electronic Work

Engineering

Design Support

Lagging

Ship-fitting

Boiler-making

Painting

Sheet-metal Work

Pipefitting

Rigging

General Labor

Staging/Scaffolding

Diesel Mechanics

2. The material handling rate proposed by the contractor and identified in Attachment J-3 (Pricing Workbook), includes all costs associated with support functions (whether charged directly or indirectly by the Contractor's accounting systems) provided in support of the direct production functions listed in Note B paragraph 1 above.

Support functions are considered to be included in the Contractor's fully burdened ship repair labor rate for direct production hours. Labor hours for the below support functions shall not be separately proposed, including in support of subcontractors. Support functions include, and are not limited to, those types listed below:

Testing

Quality Assurance

Execution Planning

Cleaning (except tank cleaning)

Supervision (all types, including, but not limited to supervision of trades, support personnel and subcontractors)

Security

Surveying

Administration

Transportation

Purchasing Staff

Lofting

Other indirect support

Handling & Warehousing

Safety/Environmental

Program Management

3. The labor rate is a fixed hourly rate that includes all wages, (i.e. straight time, overtime, shift differential, holiday time, etc.), overhead, all other indirect costs, general and administrative expenses, Facilities Capital Cost of Money (FCCOM) and profit. The ship repair labor rate represents a blended rate including labor transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

4. Consumable materials are goods used in the ordinary course of work performance such as office supplies, paper, rags, vehicle or equipment fuel costs, cleaning chemicals, disposable tools, welding rods, paint buckets, paint brushes, protective clothing, etc., that are consumed/used in the process of repair and do not become an integral part of the repaired vessel. Consumable material shall be included in the Contractor's fully burdened ship repair labor rate and not separately priced.

5. Physical materials are good that become incorporated into the repaired vessel in the course of the repair, such as replacement steel, pipes, paint, and fasteners. The material burden rate applies to physical materials but not to consumable materials. The material burden rate will be applied to the actual cost of the physical material. Actual cost does not include handling charges, general and administrative cost, overhead, profit, or any other indirect cost.

6. For contract changes involving subcontractors, subcontractor quotes will be treated as Other Direct Costs (ODCs) and will be subject to the material burden rate identified in Attachment J-3 (Pricing Workbook). Subcontractor quotes must be competitively acquired, and submitted with the contractor's pricing proposal in response to CCOs and RCCs, if applicable, issued by the Contracting Officer. At no time will the proposed total to the performed by prime contractor combined with subcontractor quote, material quote, and applicable handling be allowed to cost more than it would have, had the prime contractor directly provided all material and labor. If the Contractor intends to subcontract a CCO or RCC for procurement of material only, the Contractor shall notify the Contracting Officer prior to submitting its CCO pricing stating the reason subcontracting the CCO or RCC is the best value to the Government. The proposed total pricing restriction addressed in the preceding sentence does not apply in any case where the work is required to be performed by Original Equipment Manufacturers (OEMs), or Government directed subcontractors. CCOs or RCCs that are subcontracted for material only (no associated labor required within the CCO or RCC) shall not be subject to the Material Handling Rate. Any material handling rate applied to new work shall be approved by the discretion of the KO, upon receipt of supporting documentation in accordance with FAR 15.404-3.

7. The Contract fixed labor rate and material handling rate identified in Attachment J-3 (Pricing Workbook) shall be used for negotiating growth and new work during the availability and up to three (3) months after the Attachment J-5 (Execution Milestones) "Contract Complete" date.

NOTE B: AVAILABILITY SCHEDULE PERFORMANCE

1. The Contractor shall schedule the performance of all items in the work package, including all Base and Option items, so as to permit a contract scope increase which includes the total contract wide number of labor hours and material dollars to complete growth work as described in TIME and MATERIAL CLIN.

2. The Contractor agrees that these labor hours and materials, if tasked, shall be performed, purchased and installed concurrently with the work items, without impacting, accelerating, or causing delay or disruption to the work required by the base and option work items, to any other Government contract, or to any other work in progress for the Government.

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Complete the Mid-Term Availability (MTA) of USS MIGUEL KEITH (ESB-5) as described in accordance with Military Sealift Command (MSC) specification., SSU SN 27-001, under Section J, Attachment J-1. This is a total of subline items as described in Contractor Price Breakdown sheet, Attachment J-3. All prices shall be in NET US Dollars inclusive of all applicable charges. The Contractor shall submit an itemized breakdown of the price for each work item on the form provided in Section J, Attachment j-3. Pricing Arrangement: Firm Fixed Price	1	Lot		
0002	Complete the MTA of USS MIGUEL KEITH (ESB-5) as described in accordance with Ship Repair Facility (SRF) specifications, SING 003-27, under Section J, Attachment J-1. This is a total of subline items as described in Contractor Price Breakdown sheet, Attachment J-3. All prices stated shall be in NET US Dollars inclusive of all applicable Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 0003	Work Item 0506 TALT 15-014 Install CMWD System for USS MIGUEL KEITH (ESB-5) as described in Attachment J-3, Contractor Price Breakdown in accordance with MSC specification, SSU SN 27-001 under Section J, Attachment J-1. All prices stated shall be in NET US Dollars inclusive of all applicable charges. This option may be exercised up to full quantity by the US Governemnt. Pricing Arrangement: Firm Fixed Price	1	Job		
	MTA Extension of Services for USS MIGUEL KEITH (ESB-5). This is a service total of subline items as described in Work Item 0030 Continuation of Services described in Attachment J-3, Contractor Price Breakdown in accordance with MSC specification, SSU SN 27-001 under Section J, Attachment J-1.				

Option Line Item 0004	All prices stated shall bein NET US Dollars inclusive of all applicable charges. This option may be exercised up to full quantity by the US Government. Pricing Arrangement: Firm Fixed Price	15	Days		
0005	Growth Work - Time & Materials Not to Exceed (NTE) CLIN Labor: Unit Labor Rate: \$/Hr=_____:Qty in Hours: = 11,515; Extended Price \$_____ (Hrs x Labor Rate) Contractor shall not incur any costs on CLIN 0005 without advance prior written approval from the Contracting Officer. Pricing Arrangement: Time and Materials Pricing Arrangement: Time and Materials	1	Lot		
0006	Growth Work - Time and Materials Not to Exceed (NTE) CLIN Growth material/other costs without markup = \$1,970,300.00 Qty: 1 Material Handling/Percent Markup % _____ Extended Price \$_____ (\$1,970,300.00 x % markup) Contractor shall not incur any costs on CLIN 0006 without advance prior written approval from the Contracting Officer. Pricing Arrangement: Time and Materials	1	Lot		

Section C - Description/Specifications/Statement of Work

C-1 GENERAL

The Contractor shall prepare for and accomplish the attached work items as specified herein and in accordance with the Specification Package Military Sealift Command (MSC) as provided herein, test procedures and other detailed data provided by the Government.

The Contractor shall perform planning, document preparation, engineering, procurement, prefabrication and shipyard production work, and/or any other work necessary to prepare for and accomplish the alterations, repairs, maintenance and routine work specified herein. These requirements include, but are not limited to, the following:

- (a) Provide the management, procurement, production, testing, quality assurance, technical capability and resources necessary to prepare for and accomplish the repairs and alterations in accordance with the requirements stated herein, the contract work specifications, and the additional work specifications if necessary within the availability time period specified in Section F.
- (b) Accomplish planning and scheduling to ensure timely procurement of Contractor Furnished Material/Contractor Furnished Property (CFM/CFP) and receipt, storage, and installation of Government Furnished Material/Government Furnished Property (GFM/GFP) and CFM /CFP.
- (c) Apply progress measurement systems to determine the physical progress of completed work for each of the elements in the contractor's scheduling plan, including material and manpower control, engineering, production, tests and trials in accordance with the Contractor's own Technical Proposal, and the work item package. The progressing system shall permit a direct comparison of the physical progress of completed work to the planned performance measurement baseline for each of the elements in the scheduling plan.
- (d) Establish management procedure and systems to identify behind schedule conditions and unfavorable schedule variance, using the scheduling plan performance measurement baseline, each of the elements in the baseline, and the progress measurement systems. The applied systems and procedures shall provide timely identification of scheduling problem areas to permit prompt management action to correct unsatisfactory conditions.
- (e) Develop a performance milestone schedule/critical path chart to measure scheduled performance. Deviations from the milestone schedule/critical path chart must be submitted to and approved by the Contracting Officer. The Contractor warrants that all work required by Section C of this contract shall be completed within the performance period stated in Section F of the Contract. A performance milestone schedule and critical path chart shall be developed and submitted in accordance with the Work Item Package.
- (f) Apply approved quality control procedures as required by this contract and the work item package to ensure procured material and performed production work conforms to the required quality standards.
- (g) Apply procedures to ensure that the ship's equipment and systems remain configured to existing baselines with regard to procured material, production work, and software.
- (h) Apply stringent configuration control procedures to ensure that configuration baselines are maintained for procured material and production work.
- (i) Provide for staging and storing of Long Lead Time Material (LLTM) for use in the availabilities, as required by the Work Item Package.
- (j) Comply with all security requirements and measures called for on the DD Form 254, if the form is listed in Section J and attached hereto.
- (k) DATA REQUIRED FOR CONTRACT CHANGE ORDER (CCO) or REQUEST FOR CONTRACT CHANGE (RCC) REQUESTS. In the event a growth requirement is validated and fully scoped, the Government may generate a CCO or RCC for which the KO may request a firm-fixed-price proposal from the Contractor.

For all generated CCOs/RCCs, the Contractor shall provide all CCOs/RCCs pricing proposals to the KO within three (3) calendar days of receipt, unless otherwise specified on an individual CCOs/RCCs. A Contractor's CCOs/RCCs price proposal shall remain valid for a minimum of 14 calendar days, unless otherwise specified on an individual CCOs/RCCs. If the Contractor intends to request settlement of a CCOs/RCCs price prior to 14 calendar days, the Contractor shall notify the KO, in writing, prior to submitting the CCOs/RCCs price proposal stating the reason the CCOs/RCCs

price proposal must be settled in less than 14 calendar days and propose a revised timeline. The request will be accepted or rejected at the discretion of the KO. The Contractor shall list as part of the CCOs/RCCs price proposal any specific terms and conditions related to completion of the change order to include impact to milestones, sequencing of adjacent work items, and revised completion date(s) for impacted work item(s). Any proposed change to a schedule milestones shall include a proposed revised date. If such items are not included as part of the CCOs/RCCs price proposal (where applicable), the CCOs/RCCs price proposal will not be considered timely received.

The pricing of the CCOs/RCCs proposal shall include at a minimum:

- a. Labor hours to be performed by the Contractor (\$_____)
- b. Subcontractor Quote (If applicable) (\$_____)
- c. Material Quote (If applicable) (\$_____)

Note 1 - Labor Hours: Proposed labor hours to be performed by the Contractor shall be provided broken down by paragraph and/or task, trade and labor hour mix as contained in the J-3 pricing attachment.

Note 2 - Material: Material pricing shall include a list detailing the source, part number, description, unit cost, quantities, total cost and underlying vendor quotes for each line item.

Note 3 - Subcontractor Quotes: Subcontractor quotes shall include labor hours, labor rate, material (part number, description, unit cost, quantity, total cost, and vendor quotes for each line item), and tiered subcontractor quotes (if applicable). The Contractor shall submit documentation establishing the price reasonableness of each subcontractor quote per FAR 15.404-3(b).

Note 4 - Supporting Documentation: The requirements for complete submission of a CCOs/RCCs price stated above represents the minimum and does not limit the Government from requesting additional information. In the event the KO is unable to make a fair and reasonable determination based on the original CCO pricing submission, the Contractor shall comply with FAR 15.402(a)(2) which requires the Contractor provide data the KO needs in order to determine a fair and reasonable price.

Note 5 - Late Submissions: The above documentation must accompany the CCOs/RCCs to be considered submitted to the KO. The number of days a Contractor's CCOs/RCCs price proposal remains valid does not begin until the CCOs/RCCs price proposal is considered received by the KO.

If circumstances arise where the Contractor is unable to submit a CCOs/RCCs proposal within the number of days specified in paragraph above, the Contractor shall notify the KO in writing of the specific circumstances and provide a revised date on which a CCOs/RCCs price proposal will be submitted. Additional time required to complete a CCOs/RCCs price proposal may be granted solely at the discretion of the KO. The new timeframe granted solely at the discretion of the KO and which may differ from the Contractor's request, shall be met by the Contractor. Notification of a late CCOs/RCCs price proposal does not exempt the Contractor from meeting its requirement, but may be considered by the Government when conducting a CPARS evaluation and utilized for past performance ratings on future contracts.

Note 6 - Requests for Clarification: If clarification is needed in response to a CCOs/RCCs, the Contractor must submit a Request for Clarification (RFC) within two (2) business days of receipt of the Government's CCOs/RCCs. Once a RFC is submitted, the Contractor, KO and Principle Port Engineer (PPE) and/or Project Manager (PM) will meet the following business day to clarify the scope of work. If, as a result of the meeting, a CCOs /RCCs revision is required, the Contractor's CCOs/RCCs price submission will run from the date of receipt of the revised CCOs/RCCs. If a RFC is received after the two (2) business day deadline, it is at the KO's discretion whether to accept the submission.

(l) **DESCOPING OF REQUIREMENTS:** The Government reserves the right to change or terminate this contract. CCO/RCC changes to descope work specifications are incorporated into the contract via descope CCOs/RCCs and can either be a partial deletion of paragraph(s) from the work specification or deletion of a work item in its entirety. The Government will rely on the labor rates and prices entered in Attachment J-3 (Pricing Workbook), for negotiating and settling CCOs/RCCs.

1. **Pricing of Deletion CCOs/RCCs:** The Contractor agrees to descope changes CCOs/RCCs at the same labor rate awarded in Attachment J-3 (Pricing Workbook), as follows:

a. Partial or full work item descoping of CCOs/RCCs from the basic work package will be descoped at the awarded labor rate in the Work Item Index tab of Attachment J-3 (Pricing Workbook).

b. Partial or full work item descoping of CCOs/RCCs from settled growth work or new work will be descoped at the agreed upon labor rate as entered in the Labor tab of Attachment J-3 (Pricing Workbook).

(m)AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER: Except as specified in the paragraph below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicates with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and, notwithstanding provisions contained elsewhere in this contract, said authority remains solely the Contracting Officer's. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price and/or schedule to cover any increase in charges incurred as a result thereof. The only exception to this is if the Contractor is ordered to stop work for a safety reason. In the event the Contractor is asked to stop work for safety reasons, the Contractor shall notify the Contracting Officer in writing of the circumstances surrounding the stop work.

If the Contractor believes it has been directed to perform work outside the scope of the contract, it must notify the Contracting Officer immediately.

C-2 TESTING AND QUALITY CONTROL

Provide and maintain an inspection system acceptable to the Government in accordance with the Specification Package Military Sealift Command (MSC) as provided herein and additional requirements contained herein.

A. Nonconforming Material. The Contractor shall establish and maintain a positive system for controlling material which is not in conformance with contractor requirements. The system shall identify and segregate nonconforming material.

B. Subcontractor Control and Evaluation

1. The Contractor shall require subcontractors and suppliers to invoke adequate inspection systems that ensure the required quality of materials, parts, components, and services for end-use in this ship repair. The Government shall be permitted to monitor the Contractor's system for inspecting subcontractors.

2. Contractor is reminded of the requirements associated with subcontracting with contractors that are debarred, suspended or proposed for debarment contained at FAR 52.209-6. As with all FAR requirements, please ensure familiarity with those requirements prior to submitting its offer.

C. Calibration

1. Only calibrated equipment shall be used to perform tests and inspections.

2. Test and measuring equipment shall be within industry standard limits and shall be calibrated against standards traceable to the National Bureau of Standards.

3. Calibrated equipment shall be identified with a label stating date of calibration, due date and certifying agency.

4. Calibrated equipment shall be used for all pressure and weight testing, measurements of electrical waves, balancing operations, tachometers and other indirect measuring devices used for inspection or to record data or dimensions required by specifications.

C-3 MANAGEMENT/STAFFING PLAN

Provide an organization chart of the significant positions who will be assigned for this availability within 10 days after award. The chart shall include the positions in upper management, program managers, negotiators, estimators, scheduling personnel, engineering personnel, key production personnel by trade, and the lead position in the shipyard safety organization, testing organization, and the quality control organization.

C-4 GENERAL TECHNICAL REQUIREMENTS

The following COMSC Instruction is hereby incorporated into this Contract by reference: COMSC Instruction 4700.16 Series, "General Technical Requirements." Copies of this instruction are available at <https://flankspeed.sharepoint-mil.us/sites/USFF-MSC> via search for "COMSC Instruction 4700.16 Series." In the event that the instruction cannot be found, please reach out to the Contracting Officer: Hipolito.p.ferrer.civ@us.navy.mil.

Requirements

This will be a Firm-Fixed-Price with Time and Material Contract Line Item Number (CLIN) award to accomplish work specifications for the USS MIGUEL KEITH (ESB-5) Mid-Term Availability.

Section D - Packaging and Marking

Section E - Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Other Instructions: The PPE will be responsible for all acceptance for the MSC requirement. DoDAAC: N32205 CountryCode: USA MSCHQ NORFOLK 471 EAST C ST., NORFOLK VA 23511 NORFOLK, VA 23511 UNITED STATES Kevin Kibbe, Thailand or Singapore Email: kevin.l.kibbe.civ@us.navy.mil Telephone: 1-757-895-9250
0002	Inspection and Acceptance Location Both Other Instructions: The PM is responsible for all acceptance of SRF requirement. DoDAAC: N62758 CountryCode: USA SRF AND JRMC YOKOSUKA PSC 473 BOX 8, FPO AP 96349 FPO, AP 96349 UNITED STATES Billy (Will) Swainson, Thailand or Singapore Email: Billy.j.swainson.civ@us.navy.mil Telephone: +65 6751 3678
Option Line Item 0003	Inspection and Acceptance Location Both Other Instructions: The PPE will be responsible for all MSC requirement. DoDAAC: N32205 CountryCode: USA MSCHQ NORFOLK 471 EAST C ST., NORFOLK VA 23511 NORFOLK, VA 23511 UNITED STATES Kevin Kibbe, Thailand or Singapore Email: kevin.l.kibbe.civ@us.navy.mil Telephone: 1-757-895-9250
Option Line Item 0004	Inspection and Acceptance Location Both Other Instructions: The PPE will be responsible for all acceptance for the MSC requirement.

	DoDAAC: N32205 CountryCode: USA MSCHQ NORFOLK 471 EAST C ST., NORFOLK VA 23511 NORFOLK, VA 23511 UNITED STATES Kevin Kibbe, Thailand or Singapore Email: kevin.l.kibbe.civ@us.navy.mil Telephone: 1-757-895-9250
0005	Inspection and Acceptance Location Both Other Instructions: The PPE will be responsible for all acceptance for the MSC requirement. DoDAAC: N32205 CountryCode: USA MSCHQ NORFOLK 471 EAST C ST., NORFOLK VA 23511 NORFOLK, VA 23511 UNITED STATES Kevin Kibbe, Thailand or Singapore Email: Kevin.l.kibbe.civ@us.navy.mil Telephone: 1-757-895-9250
0006	Inspection and Acceptance Location Both Other Instructions: The PPE will be responsible for all acceptance for the MSC requirement. DoDAAC: N32205 CountryCode: USA MSCHQ NORFOLK 471 EAST C ST., NORFOLK VA 23511 NORFOLK, VA 23511 UNITED STATES Kevin Kibbe, Thailand or Singapore Email: Kevin.l.kibbe.civ@us.navy.mil Telephone: 1-757-895-9250

Section F - Deliveries or Performance

Overall Contract Delivery Period

Government

Origin (Shipping Point)

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Period of Performance From 26 Oct 2026 To 10 Dec 2026	1 Lot	
0002	Period of Performance From 26 Oct 2026 To 10 Dec 2026	1 Lot	
Option Line Item 0003	Period of Performance From 26 Oct 2026 To 26 Dec 2026	1 Job	
Option Line Item 0004	Period of Performance From 11 Dec 2026 To 26 Dec 2026	15 Days	
0005	Period of Performance From 26 Oct 2026 To 10 Dec 2026	1 Lot	
0006	Period of Performance From 26 Oct 2026 To 10 Dec 2026	1 Lot	

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-15	Stop-Work Order.	Aug 1989		
52.247-29	F.o.b. Origin.	Feb 2006		

Section G - Contract Administration Data

G-1.0 Designated Invoice Office

The Contractor shall submit its invoice, as described in "Invoice Information" below, and Material Inspection and Completion Report as part of submission of payment request made using Wide Area Work Flow (WAWF).

In addition, Contractor shall submit its invoice and documents via email to the following:

Mr. Kevin Kibbe, kevin.l.kibbe.civ@us.navy.mil

MSCFE-Singapore-N8@us.navy.mil

Invoice Information

Pursuant to the requirements of FAR 52.232-25 Prompt Payment (JAN 2017), a proper invoice must include the following information:

(a) Name and address of the Contractor;

(b) Invoice date;

(c) Invoice number;

(d) Contract number or other authorization for supplies delivered or services performed (including order number, contract line item number (CLIN) and, if applicable, the contract subline item number (SLIN);

(e) Description, quantity, unit of measure, unit price, and extended price of supplies delivered or services performed;

(f) Shipping and payment terms (e.g., shipment number and date of shipment, prompt payment discount terms) and the accounting classification reference number (ACRN) as identified on the financial accounting data sheets. The bill of lading number and weight of shipment will be shown for shipments on Government bills of lading;

(g) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment);

(h) Name (where practicable), title, phone number and mailing address of person to be notified in event of a defective invoice; and

(i) Any other information or documentation required by other requirements of the contract (such as evidence of shipment).

G-2.0 Designated Payment Offices: Payment will be made by the following office or as otherwise specified in the contract at each Site.

N50082
ACCOUNTS PAYABLE NAVY ERP
PO BOX 2050
5450 CARLISLE PIKE
MECHANICSBURG, PA 17055-0791

G-3.0 Payment Method:

(a) Payment will be made by Wide Area WorkFlow (WAWF).

(b) If payment by WAWF applies, payment shall be made in accordance with DFARS 252.232-7006 Wide Area Work Flow Payment Instructions, PGI 232.70 Electronic Submission and Processing of Payment Requests and Receiving Reports, and <https://piee.eb.mil>.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.204-7006	Billing Instructions-Cost Vouchers	May 2023		
252.217-7007	Payments.	Dec 1991		
252.217-7008	Bonds.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7008	Assignment of Claims (Overseas).	Jun 1997		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Combo

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

N/A

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>N50082</u>
Issue By DoDAAC	<u>N62649</u>
Admin DoDAAC	<u>N62649</u>
Inspect By DoDAAC	<u>N/A</u>
Ship To Code	<u>N62387</u>
Ship From Code	<u>N/A</u>

Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>N62387</u>
Service Acceptor (DoDAAC)	<u>N62387</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>HAA120</u>
Other DoDAAC(s)	<u>N/A</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

hipolito.p.ferrer.civ@us.navy.mil

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

H-1.0 OCCUPATIONAL AND HEALTH STANDARDS FOR SHIPYARD EMPLOYMENT (29 CFR 1915)

The Contractor shall fully comply with 29 Code of Federal Regulations Part 1915, Occupational and Health Standards for Shipyard Employment (29 CFR 1915), as it is effective at the date of contract award, while performing any contract that is awarded from this solicitation. The provisions of 29 CFR 1915 shall apply to the same extent as if the ship repairing, shipbuilding, and shipbreaking employments and related employments to be performed under the contract are wholly accomplished on the navigable waters of the United States. The Contractor shall comply with applicable provisions of the laws and regulations where the ship repairing, shipbuilding, and shipbreaking employment and related employments are performed in addition to complying with the corresponding provisions of 29 CFR 1915 in instances in which those laws and regulations require compliance with more stringent safety standards. The Contractor shall promptly notify the contracting officer if it becomes aware of any law or regulation that is applicable where the ship repairing, shipbuilding, and shipbreaking employment and related employments are performed that precludes compliance with any provision of 29 CFR 1915.

H-2.0 EXTENSION OF COMMERCIAL WARRANTY (NAVSEA) (NOV 1996)

The Contractor shall extend to the Government the full coverage of any standard commercial warranty normally offered in a similar commercial sale, provided that such warranty is available at no additional cost to the Government. The Contractor shall provide a copy of the standard commercial warranty with the item. The standard commercial warranty period shall begin upon the final acceptance of the applicable material or software. Acceptance of the standard commercial warranty does not waive the Government's rights under the "Inspection" clause, nor does it limit the Government's rights with regard to other terms and conditions of the contract. In the event of a conflict, the terms and conditions of the contract shall take precedence over the standard commercial warranty.

H-3.0 CONTROL OF UNCLASSIFIED INFORMATION (SRF-JRMC Requirements Only)

The Contractor shall not provide Controlled Unclassified Information (CUI) U.S. Navy technical information (engineering drawings, technical manuals, system or equipment photographs or any other U.S. Navy engineering data in any form (orally, paper copy, film or digital file/image) to anyone except SRF-JRMC employees, other Department of Defense (DoD) employees or U.S. DoD Contractors requiring the data for accomplishment of an SRF-JRMC business processes unless the data is marked Distribution Statement "A" (Approved for public release; distribution is unlimited) or has been approved for unrestricted public release by the Commanding Officer of SRF-JRMC or Commander U.S. Naval Forces Japan (COMNAVFORJAPAN) Public Affairs Officer (PAO). The Contractor shall notify SRF-JRMC Code 700 (Code 950 in Sasebo) and request written permission to release CUI outside of SRF-JRMC, DoD Activities or U.S. DoD Contractors that are not involved in the SRF-JRMC business process if the Contractor believes that the release is required to support a SRF-JRMC business or Public Affairs requirement.

H-4.0 Lay Down Space

The Contractor may request the lay down space adjacent to the ship yard in * (location and name of the base) Upon the receipt of approval by the Government, the Contractor may obtain the applicable lay down space. The Contractor shall be responsible for all the cost, but not limited to, for maintaining the facility, utility, safety, and security.

(*) To be determined at the time of contract.

H-5.0 PREVENTION OF THE DISCHARGE OF OIL AND HAZARDOUS SUBSTANCES

(a) Policy. In compliance with Executive Order Number 11752 (38 F.R. 34793), the policy of the Department of the Navy (DON) is to conform to the provisions of the Federal Water Pollution Control Act, as amended (Title 33 U.S.C. 1251 et seq), and the Oil Pollution Act of 1990, as amended (Title 33 U.S.C. 2701 et seq), insofar as these Acts prohibit the discharge of oil, oily mixtures, and hazardous substances, and regardless of whether or not these Acts pertain specifically to the Naval vessel and shore activities. The prescribed clause is intended to implement that policy with respect to the ship(s) being constructed or undergoing repair and overhaul under this contract.

(b) Definitions. For the purpose of this clause, the terms "oil," "oily mixtures," "hazardous substance," and "discharge" shall have the meanings as defined in the Acts referred to in paragraph (a) of this clause and other environmental statutes.

(c) Trials. Prior to commencement of any dock or sea trials hereunder, the contractor shall assure the Administrative Contracting Officer (ACO) by demonstrations, completed test memoranda, or other means reasonably acceptable to the COR that all equipment, the function of which is to prevent the accidental discharge of oil, oily mixtures, or hazardous substances from the ship, that the contractor shall be required by the specifications to install, are fully operable.

(d) Reports. The contractor shall, as soon as it has knowledge of any discharge of oil, oily substance, or hazardous substance from the ship, immediately notify the ACO thereof and shall immediately take all reasonable steps to prevent further discharge. Within 24-hours thereafter, the contractor shall file with the ACO the "Oil or Hazardous Substance Discharge Report."

(e) Liability. The contractor shall not be liable for the costs incurred by the Government for the removal of such oil, oily mixture, or hazardous substance, except that the contractor shall be liable to the Government for all such costs of removal where such discharge was the result of willful negligence or willful misconduct within the privity and knowledge of the contractor.

H-6.0 EMPLOYMENT OF NAVY PERSONNEL RESTRICTED

In performing this contract, the contractor will not use as a consultant or employ (on either a full or part-time basis) any active duty Navy personnel (civilian or military) without the prior approval of the contracting officer. Such approval may be given only in circumstances where it is clear that no laws and no DOD or Navy instructions, regulations, or policies are contravened and no appearance of a conflict of interest will result.

H-7.0 ASBESTOS REMOVAL REQUIREMENTS

(a) During the performance of this contract the contractor and subcontractors may be required to perform work which involves the removal or disturbance of asbestos or asbestos containing products. This clause applies to each instance of asbestos removal or disturbance.

(b) The contractor shall comply with the precautions required in 29 CFR 1910.1001, 29 CFR 1926.58 and 40 CFR Part 61 and all other applicable Federal, State, and Local restrictions. The contractor shall forward a copy of all required notices, licenses and permits to the KO immediately upon issuance or receipt.

(c) The latest change to the Federal, State and Local Regulations in effect at the time of issuance of the contract shall govern. Compliance with these regulations is mandatory and is necessary to protect the employees of the contractor and Naval personnel from exposure to asbestos fibers in excess of the Occupational Safety and Health Administration (OSHA) Action level airborne concentration (currently 0.1 fibers per cubic centimeter (f/cc) of air).

(d) During removal or disturbance, the contractor shall control airborne asbestos concentrations outside the removal boundary to less than 0.1 f/cc at all times.

(e) After removal or disturbance is complete, the areas within the removal boundary shall not be released for re-occupancy until clearance air sampling demonstrates these spaces have concentrations of asbestos less than 0.1 f/cc.

(f) In all respects, the performance of air sampling and analysis shall be performed in accordance with the OSHA Reference Method (Appendix A of 29 CFR 1910.1001), with the following additional specifications:

(1) Aggressive clearance sampling shall be performed on 25 mm cassettes at 2.0 liters per minute for a minimum of four hours.

(2) In performing the clearance sampling, the pump shall be placed within the compartment where the removal or disturbance occurred. When this operation is conducted in a multilevel space, at least one pump shall be placed on each level.

(3) Air sampling shall be performed by a person competent in sampling procedures and overseen by an industrial hygienist certified for comprehensive practice (CIH) by the American Board of Industrial Hygiene.

(4) Laboratory analysis of samples shall be performed by a participant in the American Industrial Hygiene Association (AIHA) Proficiency in Analytical Testing (PAT) Program rated proficient for asbestos and air.

(g) Personal sampling shall be conducted using breathing zone air samples, which are representative of the 8-hour Time-Weighted Average (TWA) exposure of each individual. Samples shall be collected and analyzed using the OSHA Reference Method contained in either 29 CFR 1910.1001 (as amended) or 29 CFR 1926.58 (as amended).

(h) The contractor agrees to indemnify MSC for any fines assessed by Federal, State or Local Agencies, for the contractor's failure to properly follow applicable regulations.

(i) The contractor shall insert this clause in all subcontracts entered into under this contract.

Note: The Contractor shall comply with applicable provisions of the laws and regulations where the ship repairing, shipbuilding, and shipbreaking employment and related employments are performed in addition to complying with the corresponding provisions of 29 CFR 1915 in instances in which those laws and regulations require compliance with more stringent safety standards.

H-8.0 TIME-AND-MATERIALS GROWTH CLIN

(a) This contract will utilize a Time-and-Materials (T&M) Growth CLIN 0005 and 0006 which is funded to accommodate the anticipated growth work that may arise during the performance of the specified Work Items (WIs) under CLIN 0001. The contractor will provide the man-hours and materials at the agreed rates, as listed in CLIN 0005 and 0006, Section B, when authorized by the Contracting Officer in accordance with this clause. The total authorized growth work may not exceed the total NTE dollar value of the T&M Growth CLIN, however, the mix of labor hours and material provided above may be adjusted so long as the total does not exceed the dollar value of the Growth CLIN.

(b) Labor hours and material in T&M CLIN are not subject to FAR 52.243-1 'Changes - Fixed Price' and are within the scope and pricing of this contract. The utilization of T&M CLIN is at the discretion of the Contracting Officer and subject to the schedule phasing identified in Section B, Note B of this solicitation.

(c) The labor hours and material requirements listed in T&M CLIN in Section B and included in Attachment J-3 (Pricing Workbook), are part of this Contract. Prime Contractor efforts shall be deducted from the labor hours allocated. Subcontractor efforts and materials shall be deducted from the materials allocated. The unauthorized balance of labor hours and materials remaining in the T&M CLINs will be recouped via final contract modification at the end of the availability, when it is evident no additional growth work will be directed. The final contract modification shall be subject to the requirements outlined in Section C, Paragraph I.1.c.iii, 'Deletions of Unused Growth Reservation Embedded in Work Items,' which amounts to a credit to the Government that equals 100% of unused hours, materials and dollars.

(d) GROWTH WORK - Growth is defined as any additional work identified and authorized after contract award and prior to availability completion that is related to a work item included in the original work package defined in CLIN 0001 and as attached under Section J. Any additional work determined by the Contracting Officer as not within the scope of any of the WIs shall be considered NEW WORK and will not be covered by this Growth CLIN.

(1) After any inspection reports detailed in any of the Work Items (WIs) are submitted to the MSC Port Engineer, the contractor will propose solutions, recommendations, material availability, and time impacts to the Period of Performance. This will be in the form of a Condition Found Report (CFR), which will be submitted to the PPE within twenty-four (24) hours after the conditions have been found and identified. This form (refer to Para. 7.6 WI 0013) shall be submitted electronically and physically for record keeping purposes. No work under this T&M CLIN shall be performed, and no costs shall be incurred, until a formal written authorization is issued by the Contracting Officer (CO) as stated in Section C, paragraph (n).

(2) The MSC PPE shall review the CFR and will determine further action. When determined by the PPE that the work detailed on the CFR is required and would require additional man-hours or materials, the CFR is returned to the contractor through the Contracting Office, as growth work together with a Deficiency Log (DL) detailing the corrective actions and additional work requirements. Time-and-Material Authorization will be utilized for each growth work request and approval.

(3) Upon receipt of a growth work requirement, the contractor shall submit a proposal with the estimated total labor hours required and a list of required materials and their estimated costs, supported by vendor quotes or catalog prices, within 3 working days, or as specified by the Contracting Officer. The Contracting Officer and the MSC PPE will review and approve each proposal. Once an agreement has been reached, the ACO will issue an authorization to enable the contractor to commence work. The price negotiated by the parties shall be a Not-to-Exceed (NTE) price for the proposed task (Labor + Materials). If, during execution of the T&M CCO the Contractor exceeds an NTE price without prior authorization from the Contracting Officer, it does so at its own risk and may not be compensated for any overruns.

(4) The CO will develop a growth work tracking log for the Growth CL

(d) Effort performed in fulfilling the obligations specified above shall only include effort performed in direct support of this contract and shall not include time and effort expended on such things as (local travel to and from an employee's usual work location), uncompensated effort while on travel status, truncated lunch periods, work (actual or inferred) at an employee's residence or other non-work locations or other time and effort which does not have a specific and direct contribution to the tasks described in this solicitation.

(e) Only actual, authorized direct production labor hours expended shall be deducted for invoicing from the allocated labor hour effort in the T&M CLIN. Per Note A, paragraph 1, all non-production labor shall be included in the Contractor's fully burdened labor rate. Non-production hours shall not be included in pricing submitted in support of growth issued under the T&M CLIN.

(f) Only authorized material dollars shall be deducted from the allocated material reservation set forth in T&M CLIN. This material reservation consists of the total cost of materials and subcontractor efforts proposed. All subcontractor quotes shall be included in the Change Order Price Analysis (COPA) as per Section C, paragraph (k). Material dollars shall be proposed in accordance with Section B, Note A. For instance, material dollars may include freight or duties if specifically itemized on the invoice for the material. However, the Contractor shall not be allowed to add material handling charges, overhead (including G&A), or profit into the settled cost of materials deducted from the material reservation.

(g) If, in the opinion of the Contractor, any effort directed in the T&M CCO calls for effort outside the scope of the contract, the Contractor shall notify the CO in writing within two (2) business days after the receipt of any such direction. In the event of a cost dispute, the KO may unilaterally authorize hours and material against T&M CCO work. The Contractor shall not proceed with the work directed by the T&M CCO unless and until the Contractor is notified by the KO to proceed with the directed work within the scope of the contract. The Contractor is required to proceed with the directed work as directed by the CO. Thereafter, any remaining disagreement shall be addressed in accordance with FAR 52.233-1(Alt. 1) 'Disputes'; however, nothing in this clause shall excuse the Contractor from proceeding with the subject growth work as directed by the Contracting Officer.

(h) Reporting and Invoicing:

(1) For each authorized growth work task, the Contractor shall provide a monthly status report to the PPE detailing: Work accomplished during the period. Labor hours expended by labor category. Materials purchased and costs incurred. Percentage of work completed. Total costs incurred to date against the task-specific NTE.

(2) Invoices for T&M work must be submitted separately from FFP invoices and must include all supporting documentation (signed time sheets, material receipts) for the costs being claimed in accordance with the payment clause at 52.232-7 "Payments under Time and Materials and Labor-Hour Contracts."

Section I - Contract Clauses

52.216-7 Allowable Cost and Payment

CLIN 0005 and CLIN 0006 applies solely to this contract

52.232-7 Payments Under Time and Materials Labor Hour Contracts

CLIN 0005 and CLIN 0006 applies solely to this contract

252.217-7007 Payments

CLIN 0001 and CLIN 0002 applies solely to this contract

252.217-7009 Default

The liquidated damages under clause 252.217-7009 paragraph (f) of this contract is set at \$61,705.58 per calendar day of delay.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-2	Security Requirements.	Mar 2021		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-27	Prohibition on a ByteDance Covered Application.	Jun 2023		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.210-1	Market Research.	Nov 2021		
52.215-2	Audit and Records-Negotiation.	Jun 2020		
52.215-8	Order of Precedence-Uniform Contract Format.	Oct 1997		
52.215-14	Integrity of Unit Prices.	Nov 2021		
52.215-15	Pension Adjustments and Asset Reversions.	Oct 2010		
52.215-17	Waiver of Facilities Capital Cost of Money.	Oct 1997		
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions.	Jul 2005		
52.215-19	Notification of Ownership Changes.	Oct 1997		
52.215-23	Limitations on Pass-Through Charges.	Jun 2020		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.228-3	Workers' Compensation Insurance (Defense Base Act).	Jul 2014		
52.228-4	Workers' Compensation and War-Hazard Insurance Overseas.	Apr 1984		
52.229-6	Taxes-Foreign Fixed-Price Contracts.	Feb 2013		

52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.230-4	Disclosure and Consistency of Cost Accounting Practices-Foreign Concerns.	Jun 2020		
52.230-6	Administration of Cost Accounting Standards.	Jun 2010		
52.232-8	Discounts for Prompt Payment.	Feb 2002		
52.232-11	Extras.	Apr 1984		
52.232-17	Interest.	May 2014		
52.232-18	Availability of Funds.	Apr 1984		
52.232-22	Limitation of Funds.	Apr 1984		
52.232-25	Prompt Payment.	Jan 2017		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes.	May 2014		
52.233-1	Disputes. (Alternate I)	May 2014	Alternate I	Dec 1991
52.233-3	Protest after Award.	Aug 1996		
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Nov 2024		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	Feb 2026		
52.242-13	Bankruptcy.	Jul 1995		
52.243-1	Changes-Fixed-Price.	Aug 1987		
52.244-5	Competition in Subcontracting.	Aug 2024		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (DEVIATION 2025-O0003)	Jan 2025	Deviation 2025-O0003	Mar 2025
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.245-1	Government Property.	Sep 2021		
52.245-1	Government Property. (Alternate I)	Sep 2021	Alternate I	Apr 2012
52.245-9	Use and Charges.	Apr 2012		
52.246-26	Reporting Nonconforming Items.	Aug 2024		
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012		
52.249-4	Termination for Convenience of the Government (Services) (Short Form).	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7021	Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirement.	Jan 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.204-7023	Reporting Requirements for Contracted Services.	Jul 2021		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.211-7008	Use of Government-Assigned Serial Numbers.	Sep 2010		
252.217-7003	Changes.	Dec 1991		
252.217-7004	Job Orders and Compensation.	May 2006		
252.217-7005	Inspection and Manner of Doing Work.	Jul 2009		
252.217-7006	Title.	Dec 1991		
252.217-7009	Default.	Dec 1991		
252.217-7010	Performance.	Jul 2009		
252.217-7011	Access to Vessel.	Dec 1991		
252.217-7012	Liability and Insurance.	Aug 2003		
252.217-7013	Guarantees.	Dec 1991		
252.217-7014	Discharge of Liens.	Dec 1991		
252.217-7015	Safety and Health.	Dec 1991		
252.217-7016	Plant Protection.	Dec 1991		
252.222-7002	Compliance with Local Labor Laws (Overseas).	Jun 1997		

252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7002	Qualifying Country Sources as Subcontractors.	Mar 2022		
252.225-7004	Report of Intended Performance Outside the United States and Canada - Submission after Award.	Jul 2024		
252.225-7005	Identification of Expenditures in the United States .	Jun 2005		
252.225-7007	Prohibition on Acquisition of Certain Items from Communist Chinese Military Companies.	Dec 2018		
252.225-7008	Restriction on Acquisition of Specialty Metals.	Mar 2013		
252.225-7009	Restriction on Acquisition of Certain Articles Containing Specialty Metals.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7019	Restriction on Acquisition of Anchor and Mooring Chain.	May 2024		
252.225-7021	Trade Agreements.	Feb 2024		
252.225-7041	Correspondence in English.	Jun 1997		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7064	Restriction on Acquisition of Certain Satellite Components.	May 2024		
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.225-7976	Contractor Personnel Performing in Japan (DEVIATION 2018-O0019)	Aug 2018	Deviation 2018-O0019	Aug 2018
252.229-7014	Full Exemption from Two-Percent Excise Tax on Certain Foreign Procurements.	Oct 2022		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.233-7001	Choice of Law (Overseas).	Jun 1997		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.242-7005	Contractor Business Systems.	Jan 2025		
252.242-7006	Accounting System Administration.	Jan 2025		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.245-7000	Government-Furnished Mapping, Charting, and Geodesy Property.	Apr 2012		
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.246-7003	Notification of Potential Safety Issues.	Jan 2023		
252.246-7004	Safety of Facilities, Infrastructure, and Equipment for Military Operations.	Oct 2010		
252.246-7006	Warranty Tracking of Serialized Items.	Mar 2016		
252.246-7007	Contractor Counterfeit Electronic Part Detection and Avoidance System.	Jan 2023		
252.246-7008	Sources of Electronic Parts.	Jan 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.216-7 Allowable Cost and Payment. (Aug 2018)

ALLOWABLE COST AND PAYMENT (AUG 2018)

(a) Invoicing.

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the 30th[Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) *Small business concerns.* A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) *General and Administrative expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) *Overhead expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) *Occupancy expenses (intermediate indirect cost pool)*. Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (*i.e.*, General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) *Subcontract information*. Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p). Additional salary reference information is available at <https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedBeforeJune24.pdf> and <https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedafterJune24.pdf>.

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (*e.g.*, trial balance, compilation, review, *etc.*).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) *Billing rates.* Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) *Quick-closeout procedures.* Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) *Audit.* At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the period of performance[insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 3 days[60days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 6 months(months) (years).

(End of clause)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Oct 2022)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(2) The factor of 10 percent shall be applied on a line item basis or to any group of items on which award may be made. Other evaluation factors described in the solicitation shall be applied before application of the factor.

(3) When the two highest rated offerors are a HUBZone small business concern and a large business, and the evaluated offer of the HUBZone small business concern is equal to the evaluated offer of the large business after considering the price evaluation preference, award will be made to the HUBZone small business concern.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may elect to waive the evaluation preference, in which case the factor will be added to its offer for evaluation purposes.

☐ Offeror elects to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of clause)

52.222-50 Combating Trafficking in Persons. (Deviation) (Alternate I) (Feb 2026) Alternate I (Feb 2026)

Alternate I (FEB 2026) (DEVIATION). As prescribed in 22.1703-2(a)(2), substitute the following paragraph in place of paragraph (c)(1)(i) of the basic clause:

(c)(1)(i)(A) The United States Government's policy prohibiting trafficking in persons described in paragraph (b) of this clause; and

(B) The following directive(s) or notice(s) applicable to employees performing work at the contract place(s) of performance as indicated below:

Document Title	Document may be obtained from:	Applies to performance in/at:

_____	_____	<u>Thailand/Singapore</u>
_____	_____	<u>Thailand/Singapore</u>

[Contracting Officer must insert title of directive/notice; indicate the document is attached or provide source (such as website link) for obtaining document; and, indicate the contract performance location outside the United States to which the document applies.]

52.223-3 Hazardous Material Identification and Material Safety Data.

(Feb 2021)

HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (FEB 2021)

(a) "Hazardous material," as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No.313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (If none, insert <i>None</i>)	Identification No.
=====	=====
=====	=====
=====	=====
=====	=====

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No.313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No.313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No.313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to-

- (i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;
- (ii) Obtain medical treatment for those affected by the material; and
- (iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with paragraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

- (3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of clause)

52.232-7 Payments under Time-and-Materials and Labor-Hour Contracts.

(Nov 2021)

PAYMENTS UNDER TIME-AND-MATERIALS AND LABOR-HOUR CONTRACTS (NOV 2021)

The Government will pay the Contractor as follows upon the submission of vouchers approved by the Contracting Officer or the authorized representative:

(a) Hourly rate.

(1) *Hourly rate* means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

- (i) Performed by the Contractor;
- (ii) Performed by the subcontractors; or
- (iii) Transferred between divisions, subsidiaries, or affiliates of the Contractor under a common control.

(2) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the Schedule by the number of direct labor hours performed.

(3) The hourly rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by employees that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(4) The hourly rates shall include wages, indirect costs, general and administrative expense, and profit. Fractional parts of an hour shall be payable on a prorated basis.

(5) Vouchers may be submitted not more than once every two weeks, to the Contracting Officer or authorized representative. A small business concern may receive more frequent payments than every two weeks. The Contractor shall substantiate vouchers (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment and by-

- (i) Individual daily job timekeeping records;
- (ii) Records that verify the employees meet the qualifications for the labor categories specified in the contract; or
- (iii) Other substantiation approved by the Contracting Officer.

(6) Promptly after receipt of each substantiated voucher, the Government shall, except as otherwise provided in this contract, and subject to the terms of paragraph (e) of this clause, pay the voucher as approved by the Contracting Officer or authorized representative.

(7) Unless otherwise prescribed in the Schedule, the Contracting Officer may unilaterally issue a contract modification requiring the Contractor to withhold amounts from its billings until a reserve is set aside in an amount that the Contracting Officer considers necessary to protect the Government's interests. The Contracting Officer may require a withhold of 5 percent of the amounts due under paragraph (a) of this clause, but the total amount withheld for the contract shall not exceed \$50,000. The amounts withheld shall be retained until the Contractor executes and delivers the release required by paragraph (g) of this clause.

(8) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis. If no overtime rates are provided in the Schedule and overtime work is approved in advance by the Contracting Officer, overtime rates shall be negotiated. Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract. If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(b) Materials.

(1) For the purposes of this clause-

(i) *Direct materials* means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

(ii) *Materials* means-

(A) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the Contractor under a common control;

(B) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(C) Other direct costs (*e.g.*, incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.); and

(D) Applicable indirect costs.

(2) If the Contractor furnishes its own materials that meet the definition of a commercial product or commercial service in Federal Acquisition Regulation (FAR) 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the-

(i) Quantities being acquired; and

(ii) Actual cost of any modifications necessary because of contract requirements.

(3) Except as provided for in paragraph (b)(2) of this clause, the Government will reimburse the Contractor for allowable cost of materials provided the Contractor-

(i) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(ii) Ordinarily makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(4) Payment for materials is subject to the Allowable Cost and Payment clause of this contract. The Contracting Officer will determine allowable costs of materials in accordance with FAR subpart 31.2 in effect on the date of this contract.

(5) The Contractor may include allocable indirect costs and other direct costs to the extent they are-

(i) Comprised only of costs that are clearly excluded from the hourly rate;

(ii) Allocated in accordance with the Contractor's written or established accounting practices; and

(iii) Indirect costs are not applied to subcontracts that are paid at the hourly rates.

(6) To the extent able, the Contractor shall-

(i) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(ii) Take all cash and trade discounts, rebates, allowances, credits, salvage, commissions, and other benefits. When unable to take advantage of the benefits, the Contractor shall promptly notify the Contracting Officer and give the reasons. The Contractor shall give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that have accrued to the benefit of the Contractor, or would have accrued except for the fault or neglect of the Contractor. The Contractor shall not deduct from gross costs the benefits lost without fault or neglect on the part of the Contractor, or lost through fault of the Government.

(7) Except as provided for in 31.205-26(e) and (f), the Government will not pay profit or fee to the prime Contractor on materials.

(c) If the Contractor enters into any subcontract that requires consent under the clause at 52.244-2, Subcontracts, without obtaining such consent, the Government is not required to reimburse the Contractor for any costs incurred under the subcontract prior to the date the Contractor obtains the required consent. Any reimbursement of subcontract costs incurred prior to the date the consent was obtained shall be at the sole discretion of the Government.

(d) *Total cost.* It is estimated that the total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule, and the Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during performing this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the then stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performing this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the then revised estimate of the total amount of effort to be required under the contract.

(e) *Ceiling price.* The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(f) *Audit.* At any time before final payment under this contract, the Contracting Officer may request audit of the vouchers and supporting documentation. Each payment previously made shall be subject to reduction to the extent of amounts, on preceding vouchers, that are found by the Contracting Officer or authorized representative not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. Upon receipt and approval of the voucher designated by the Contractor as the "completion voucher" and supporting documentation, and upon compliance by the Contractor with all terms of this contract (including, without limitation, terms relating to patents and the terms of paragraph (g) of this clause), the Government shall promptly pay any balance due the Contractor. The completion voucher, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 120 days (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(g) *Assignment and Release of Claims.* The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

(1) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible of exact statement by the Contractor.

(2) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(3) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(h) *Interim payments on contracts for other than services.*

(1) Interim payments made prior to the final payment under the contract are contract financing payments. Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act.

(2) The designated payment office will make interim payments for contract financing on the ____ [Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(i) *Interim payments on contracts for services.* For interim payments made prior to the final payment under this contract, the Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(End of clause)

52.243-7 Notification of Changes.

(Jan 2017)

NOTIFICATION OF CHANGES (JAN 2017)

(a) *Definitions.* "Contracting Officer," as used in this clause, does not include any representative of the Contracting Officer.

"Specifically Authorized Representative (SAR)," as used in this clause, means any person the Contracting Officer has so designated by written notice (a copy of which shall be provided to the Contractor) which shall refer to this paragraph and shall be issued to the designated representative before the SAR exercises such authority.

(b) *Notice.* The primary purpose of this clause is to obtain prompt reporting of Government conduct that the Contractor considers to constitute a change to this contract. Except for changes identified as such in writing and signed by the Contracting Officer, the Contractor shall notify the Administrative Contracting Officer in writing promptly, within 3 (to be negotiated) calendar days from the date that the Contractor identifies any Government conduct (including actions, inactions, and written or oral communications) that the Contractor regards as a change to the contract terms and conditions. On the basis of the most accurate information available to the Contractor, the notice shall state-

(1) The date, nature, and circumstances of the conduct regarded as a change;

(2) The name, function, and activity of each Government individual and Contractor official or employee involved in or knowledgeable about such conduct;

(3) The identification of any documents and the substance of any oral communication involved in such conduct;

(4) In the instance of alleged acceleration of scheduled performance or delivery, the basis upon which it arose;

(5) The particular elements of contract performance for which the Contractor may seek an equitable adjustment under this clause, including-

(i) What line items have been or may be affected by the alleged change;

(ii) What labor or materials or both have been or may be added, deleted, or wasted by the alleged change;

(iii) To the extent practicable, what delay and disruption in the manner and sequence of performance and effect on continued performance have been or may be caused by the alleged change;

(iv) What adjustments to contract price, delivery schedule, and other provisions affected by the alleged change are estimated; and

(6) The Contractor's estimate of the time by which the Government must respond to the Contractor's notice to minimize cost, delay or disruption of performance.

(c) *Continued performance.* Following submission of the notice required by paragraph (b) of this clause, the Contractor shall diligently continue performance of this contract to the maximum extent possible in accordance with its terms and conditions as construed by the Contractor, unless the notice reports a direction of the Contracting Officer or a communication from a SAR of the Contracting Officer, in either of which events the Contractor shall continue performance; provided, however, that if the Contractor regards the direction or communication as a change as described in paragraph (b) of this clause, notice shall be given in the manner provided. All directions, communications, interpretations, orders and similar actions of the SAR shall be reduced to writing promptly and copies furnished to the Contractor and to the Contracting Officer. The Contracting Officer shall promptly countermand any action which exceeds the authority of the SAR.

(d) *Government response.* The Contracting Officer shall promptly, within ____ (to be negotiated) calendar days after receipt of notice, respond to the notice in writing. In responding, the Contracting Officer shall either-

(1) Confirm that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance;

(2) Countermand any communication regarded as a change;

(3) Deny that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance; or

(4) In the event the Contractor's notice information is inadequate to make a decision under paragraphs (d)(1), (2), or (3) of this clause, advise the Contractor what additional information is required, and establish the date by which it should be furnished and the date thereafter by which the Government will respond.

(e) *Equitable adjustments.*

(1) If the Contracting Officer confirms that Government conduct effected a change as alleged by the Contractor, and the conduct causes an increase or decrease in the Contractor's cost of, or the time required for, performance of any part of the work under this contract, whether changed or not changed by such conduct, an equitable adjustment shall be made-

(i) In the contract price or delivery schedule or both; and

(ii) In such other provisions of the contract as may be affected.

(2) The contract shall be modified in writing accordingly. In the case of drawings, designs or specifications which are defective and for which the Government is responsible, the equitable adjustment shall include the cost and time extension for delay reasonably incurred by the Contractor in attempting to comply with the defective drawings, designs or specifications before the Contractor identified, or reasonably should have identified, such defect. When the cost of property made obsolete or excess as a result of a change confirmed by the Contracting Officer under this clause is included in the equitable adjustment, the Contracting Officer shall have the right to prescribe the manner of disposition of the property. The equitable adjustment shall not include increased costs or time extensions for delay resulting from the Contractor's failure to provide notice or to continue performance as provided, respectively, in paragraphs (b) and (c) of this clause.

Note: The phrases "contract price" and "cost" wherever they appear in the clause, may be appropriately modified to apply to cost-reimbursement or incentive contracts, or to combinations thereof.

(End of clause)

52.244-2 Subcontracts.

(Jun 2020)

SUBCONTRACTS (JUN 2020)

(a) *Definitions.* As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

N/A

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

N/A

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses - <https://www.acquisition.gov/browse/index/far> DFARS Clauses - <https://www.acquisition.gov/dfars> _____ [Insert one or more Internet addresses]

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (DFARS)[insert regulation name] (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.209-7010 Critical Safety Items.

(Aug 2011)

CRITICAL SAFETY ITEMS (AUG 2011)

(a) *Definitions.*

"Aviation critical safety item" means a part, an assembly, installation equipment, launch equipment, recovery equipment, or support equipment for an aircraft or aviation weapon system if the part, assembly, or equipment contains a characteristic any failure, malfunction, or absence of which could cause-

(i) A catastrophic or critical failure resulting in the loss of, or serious damage to, the aircraft or weapon system;

(ii) An unacceptable risk of personal injury or loss of life; or

(iii) An uncommanded engine shutdown that jeopardizes safety.

"Design control activity" means-

(i) With respect to an aviation critical safety item, the systems command of a military department that is specifically responsible for ensuring the airworthiness of an aviation system or equipment, in which an aviation critical safety item is to be used; and

(ii) With respect to a ship critical safety item, the systems command of a military department that is specifically responsible for ensuring the seaworthiness of a ship or ship equipment, in which a ship critical safety item is to be used.

"Ship critical safety item" means any ship part, assembly, or support equipment containing a characteristic, the failure, malfunction, or absence of which could cause-

- (i) A catastrophic or critical failure resulting in loss of, or serious damage to, the ship; or
- (ii) An unacceptable risk of personal injury or loss of life.

(b) *Identification of critical safety items.* One or more of the items being procured under this contract is an aviation or ship critical safety item. The following items have been designated aviation critical safety items or ship critical safety items by the designated design control activity:

1. ESB-CSI-FLIGHT DECK UNDERSIDE PRESERVATION (1 YR)
2. ESB-CCSI-CABLE PENETRATION INSPECTION (20 PCT)(5 YR)
3. ESB-CCSI-ABS ANNUAL SURVEY - TANK INSPECTION
4. ESB-CCSI-LOW PROFILE NON-SLIP WEATHERDECK
5. ESB-CCSI-LOW PROFILE NON-SLIP WEATHERDECK
6. ESB-CSI-EMERGENCY GENERATOR - INSPECT AND
7. ESB-CCSI-ANNUAL RADAR SERVICE
8. ESB-CCSI-ANNUAL ECDIS SERVICE (SCSI)
9. ESB-CCSI-ANNUAL GYRO SYSTEM PM
10. ESB-CCSI-ANNUAL VDR RECERTIFICATION
11. ESB-CCSI-ANNUAL RADIO COMMUNICATION EQUIPMENT
12. ESB-CCSI-ANNUAL INSPECTION OF MANUALLY OPERATED
13. TALT 21-023 Install FO and LO Purifier Isolation Valves on the
14. ESB-CSI-CARGO FUEL HOSE TESTING (1 YR)

15. TALT 15-014 Install CMWD System
16. ESB-CSI-EDG COUPLING INSPECTION (1 YR)
17. ESB-CCSI-INSPECT TEST AND CERTIFY MACHINERY SPACE
18. ESB-CCSI-INSPECT MISSION EQUIPMENT DECK CRANES
19. ESB-CCSI-SCBA ANNUAL INSPECTION
20. ESB-CCSI-SCBA COMPRESSOR AND FILLING STATION
21. TESB-CCSI-FIXED GAS FIREFIGHTING SYSTEM INSPECTION
22. ESB-CCSI-FIXED FOAM FIREFIGHTING SYSTEM
23. ESB-CCSI-WATER MIST-SPRAY-SPRINKLER INSPECTION
24. ESB-CCSI-FIRE AND SMOKE DETECTION AND ALARM
25. ESB-CCSI-PORTABLE FIRE EXTINGUISHER SERVICE (1 YR)
26. ESB-CCSI-FIRE AND SMOKE DAMPER SERVICE (1 YR)
27. ESB-CCSI-DEEP FAT FRYER AND RANGE HOOD FIRE
28. ESB-CCSI-FIRE STATIONS AND HOSES (1 YR)
29. ESB-CCSI-FIRE DOORS AND SHUTTERS (1 YR)
30. ESB-CSI-FUEL OIL PURIFIER SERVICE (12K HRS)
31. ESB-CSI-ANNUAL LIFERAFT DAVIT CERTIFICATION
32. ESB-CCSI-ANNUAL LIFEBOAT INSPECTION

- 33. ESB-CCSI-ANNUAL LIFEBOAT DAVIT INSPECTION
- 34. ESB-CCSI-ANNUAL RESCUE BOAT INSPECTION
- 35. ESB-CCSI-ANNUAL RESCUE BOAT DAVIT INSPECTION
- 36. ESB-CCSI-ANNUAL LIFE RAFT CERTIFICATION
- 37. ESB-CCSI-ACCOMMODATION LADDER INSPECTION (1 YR)
- 38. ESB-CCSI-DEEP FAT FRYER INSPECTION (1 YR)
- 39. ESB-CCSI-INSPECT, TEST AND CERTIFY MATERIAL
- 40. ESB-CCSI-PROPELLER CLEAN AND POLISH AND HULL

(c) *Heightened quality assurance surveillance.* Items designated in paragraph (b) of this clause are subject to heightened, risk-based surveillance by the designated quality assurance representative.

(End of clause)

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the

unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
=====	=====
=====	=====
=====	=====

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
=====	=====
=====	=====
=====	=====

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring

marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

part. (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.**

(4) Issuing agency code (if concatenated unique item identifier is used).**

(5) Enterprise identifier (if concatenated unique item identifier is used).**

(6) Original part number (if there is serialization within the original part number).**

(7) Lot or batch number (if there is serialization within the lot or batch number).**

(8) Current part number (optional and only if not the same as the original part number).**

(9) Current part number effective date (optional and only if current part number is used).**

(10) Serial number (if concatenated unique item identifier is used).**

(11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.225-7043 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (Jun 2015)

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES (JUN 2015)

(a) *Definition*. " United States ," as used in this clause, means, the 50 States, the District of Columbia , and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall-

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is-

(1) A foreign government;

(2) A representative of a foreign government; or

(3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from ____ for Navy Contracts: Naval Criminal Investigative Service (NCIS), Code 21: telephone, DSN 288-9077 or commercial (202) 433-9077.

(End of clause)

252.229-7001 Tax Relief.

(Apr 2020)

TAX RELIEF-BASIC (APR 2020)

(a) Prices set forth in this contract are exclusive of all taxes and duties from which the United States Government is exempt by virtue of tax agreements between the United States Government and the Contractor's government. The following taxes or duties have been excluded from the contract price:

NAME OF TAX: <u> (Offerior insert) </u>	RATE (PERCENTAGE): <u> (Offerior insert) </u>
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(b) Invoices submitted in accordance with the terms and conditions of this contract shall be exclusive of all taxes or duties for which relief is available. The Contractor's invoice shall list separately the gross price, amount of tax deducted, and net price charged.

(c) When items manufactured to United States Government specifications are being acquired, the Contractor shall identify the materials or components intended to be imported in order to ensure that relief from import duties is obtained. If the Contractor intends to use imported products from inventories on hand, the price of which includes a factor for import duties, the Contractor shall ensure the United States Government's exemption from these taxes. The Contractor may obtain a refund of the import duties from its government or request the duty-free import of an amount of supplies or components corresponding to that used from inventory for this contract.

(End of clause)

Section J - List of Attachments

ATTACHMENT NUMBER	TITLE/DESCRIPTION
J-1	Work Item Package (Specifications), SSU SN 27-001
J-1A	List of Work Item OEMs
J-2	List of GFP and Estimated Value of GFP
J-3	Contractor Price Breakdown
J-4	Contractor Past Performance Data Sheet
J-5	Request for Specification Clarification
J-6	FAR 52.229-11 Tax on Certain Foreign Procurements - Notice and Representation: IRS Form W-14
J-7	MSC Ship Repair Facility Survey Form (MSC Form 4330/26)
J-8	Contract Administration Plan (CAP)
J-9	Quality Assurance Surveillance Plan (QASP)

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-26	Covered Telecommunications Equipment or Services-Representation.	Oct 2020		
52.209-7	Information Regarding Responsibility Matters.	Oct 2018		
52.209-13	Violation of Arms Control Treaties or Agreements-Certification.	Nov 2021		
52.215-6	Place of Performance.	Oct 1997		
52.223-22	Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation.	Dec 2016		
52.225-20	Prohibition on Conducting Restricted Business Operations in Sudan-Certification.	Aug 2009		
52.225-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications.	Jun 2020		
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	Jun 2020		
52.230-1	Cost Accounting Standards Notices and Certification.	Jun 2020		
52.230-7	Proposal Disclosure-Cost Accounting Practice Changes.	Apr 2005		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7016	Covered Defense Telecommunications Equipment or Services-Representation.	Dec 2019		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7000	Buy American--Balance of Payments Program Certificate.	Feb 2024		
252.225-7010	Commercial Derivative Military Article-Specialty Metals Compliance Certificate.	Jul 2009		
252.225-7020	Trade Agreements Certificate.	Nov 2014		
252.225-7035	Buy American--Free Trade Agreements--Balance of Payments Program Certificate.	Feb 2024		
252.225-7042	Authorization to Perform.	Apr 2003		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.203-2 Certificate of Independent Price Determination. (Apr 1985)

CERTIFICATE OF INDEPENDENT PRICE DETERMINATION (APR 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision Lito Ferrer[insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

52.204-8 Annual Representations and Certifications.

(Jan 2025)

ANNUAL REPRESENTATIONS AND CERTIFICATIONS (JAN 2025)

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 336611[insert NAICS code].

(2) The small business size standard is 1,300[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

- (iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.
- (v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-
- (A) Are not set aside for small business concerns;
 - (B) Exceed the simplified acquisition threshold; and
 - (C) Are for contracts that will be performed in the United States or its outlying areas.
- (vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
 - (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
 - (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.
- (xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.
- (xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.
- (xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.
- (xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.
- (xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the provision at 52.204-7.
- (xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.
- (xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.
- (A) If the acquisition value is less than \$50,000, the basic provision applies.
 - (B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☐ (i) 52.204-17, Ownership or Control of Offeror.

☐ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)

FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures.*

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications.

(Oct 2024) Alternate A (Oct 2024)

ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (e) applies.

☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: *[Contracting Officer check as appropriate.]*

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below *[Offeror to insert changes, identifying change by provision number, title, date]*. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

L-1.0 GENERAL INSTRUCTIONS

The following instructions are to ensure the offerors submit information necessary for the Government to fully understand and evaluate proposals. Offerors shall follow the detailed instructions carefully and provide technical information that clearly shows the offeror's ability to meet the requirements listed in this solicitation. The Government may reject any or all offers if such action is in the public interest and may waive informalities and minor irregularities in offers received. To aid in the evaluation process, proposals shall be complete, comprehensive, and clearly presented. To be eligible for award, the offeror's proposal must meet all technical requirements and conform to all required terms and conditions of this solicitation. Failure to comply with the terms and conditions of this solicitation as follows may result in the offeror being ineligible for award.

The date and closing time for receipt of offers for this solicitation is provided in block 9 on the SF 33. Offers shall be submitted electronically to the Point of Contact listed below. Electronic files shall not be larger than 7MB per email. If they are larger than 7MB, offeror may request to transmit via DoD SAFE. Do not send zip files via email. The Government shall not be responsible for any technical difficulties during the electronic transmission of proposals. Offerors are encouraged to confirm the receipt of their electronic proposals via telephone or separate email.

POINT OF CONTACT (POC)

Primary POC: Lito Ferrer

Email: Hipolito.p.ferrer.civ@us.navy.mil

Phone: +65 6751 2271

Secondary POC: Keiko D'Agostino

Email: Keiko.dagostino.civ@us.navy.mil

Phone: +65 6750 2839

1. GENERAL INFORMATION

A. Clarification and Deviation: Offerors may use the Request for Specification Clarification, Attachment J-5 to request clarification of any work item specification or contract term. Offerors may also use the request form to seek deviations from the specification. Approval is at the discretion of the Contracting Officer. See below for instructions. All requests for specification clarification including deviation/exception requests must be submitted not later than the close of fifteen (15) calendar days before the time and date for receipt of offers. Requests must be sent by email to the listed POC in Section L-1.0. No verbal requests for information will be accepted by the Agency.

When using the request form for a deviation(s), offerors must explain in detail its proposed deviation to the specifications and/or solicitation terms and conditions. State precisely how the proposed deviation(s) differ from the applicable specification paragraph(s) and/or solicitation terms and conditions, and how the proposed deviation(s) will meet the overall requirements in the specification, and the solicitation terms and conditions.

All Requests for Specification Clarification other than a proposed deviation will be shared with all other offerors. A proposed deviation approved for one offeror may be approved for all other offerors in order to maintain a consistent specification for all offerors. Approval of a deviation may be withdrawn at any time prior to award. Offerors will be allowed an opportunity to adjust their offers to account for the withdrawn approval.

B. Amendments: The Government may revise the solicitation at any time by means of an Amendment. It is an Offeror's responsibility to communicate with the Contracting Officer and verify the Contracting Officer received any potential amendments and procurement notifications for this solicitation.

C. *Inspection of Site:* The Government will attempt to accommodate the ship check request based on the availability of the ship's schedule. For any ship check questions, please use the Request for Specification Clarification, Attachment J-5 for the request.

D. *One-bid Situation:* If the Government receives only one proposal for solicitation the Government reserves the right to require Certified Cost and Pricing Data in accordance with DFARS 252.215-7008. As identified by the Contracting Officer, additional cost or pricing data will be required in order to determine whether proposed pricing is fair and reasonable or to comply with the statutory requirements of in accordance with 10 U.S.C. (S)2306(a) and Other Than Certified Cost and Pricing Data in accordance with FAR 15.403-3. The Offeror agrees to provide the proposal adequacy checklist in accordance with DFARS Clause 252.215-7009 and any additional data requested within 30 days of notification.

L-2.0 SUBMISSION OF PROPOSALS

A. *Proposal Due Date:* All copies of proposals shall be received by the Government no later than the date specified in Block 9 (Front Page) of the RFP. Late proposals WILL NOT be considered. Partial proposals or attachments submitted late WILL NOT be considered. Offerors are advised to consult FAR 15.208 related to timely receipt of proposal. Offeror must provide a proposal valid for at least 180 calendar days from the proposal due date.

B. *Electronic Copy Submission:* Proposals shall be submitted electronically via email to the POC listed in Section L-1.0. Offeror may request to transmit large file via DoD SAFE via the POC listed in Section L. DoD SAFE is a secure Government repository which enables the sharing of large files and requires outside users to receive a drop-off request from an internal (U.S. Government) user. Therefore, any offeror intending to transmit large files to this solicitation shall request access by sending an email to the above personnel serving as POC listed above, no later than three (3) business days prior to proposal due date. Once the drop-off request is granted, the offeror will receive an e-mail with a link to submit the drop-off. Offeror's shall note that drop-off request is valid for 14 days only. The offeror shall then submit their proposal by the proposal due date specified in Block 9 of the solicitation.

Offerors shall click the "Confirm Delivery" button within the DoD SAFE app in order to receive a confirmation of pick up by the Government. The DoD SAFE system records the time of files transmission. Offerors are responsible for ensuring that they drop-off their proposal and generate a drop-off time prior to the proposal submission date and time. In the event of a dispute of proposal time submission, the pick-up e-mail with the system generated drop off time within the body of the e-mail shall serve as the official time that the proposal was submitted to the Government. Late proposal submissions will be handled in accordance with FAR 52.215-1.

C. *Notification of Electronic Submission:* Offerors who submitted a proposal in response to this solicitation shall notify the POC of this solicitation via email, prior to proposal due date.

D. *Proposal Format:* The entire content of the proposal shall be in English. For electronic submission, folders and files shall be appropriately labeled for easy identification. The files shall be in the format that is compatible with and capable of being opened with Microsoft Office Suite 2016 or Adobe Acrobat Reader 2020. All files uploaded must be scanned to ensure that there are no computer viruses within the file. The proposal shall have separate files. All spreadsheets shall be in Microsoft Excel form at such that each mathematical equation is obvious and traceable. No fields or documents shall be password protected. If files are compressed, the necessary decompression program must be included.

Offerors shall submit their proposal in accordance with the following format requirements:

- a. A4 or 8.5x11-inch size paper
- b. Font must be Times New Roman, with font size of 12 points
- c. Margins shall be at least one inch, on all sides
- d. Photographs, pictures, diagrams, charts and tables are permitted

E. *Alteration or Non-Compliance with Solicitation Requirements:* Offerors shall respond to the solicitation as posted. Offerors who alter the solicitation (except for completing appropriate "fill-in" blocks and certifications) or fail to comply with all aspects of the

solicitation, may be considered non-responsive and thus ineligible for award. ***The offeror shall not propose any deviation(s) that are not approved by the Contracting Officer in any part of the proposal package.***

F. *Solicitation Responsiveness*: Offerors shall not presume the Government has knowledge of outside information not provided in the proposal. Additionally, Offerors are advised that statements such as: "the offeror understands," "the offeror has a long history of outstanding support," "standard procedures shall be used," "well known techniques shall be employed," or any paraphrasing of the solicitation, shall be considered inadequate to demonstrate experience, knowledge of, or compliance with solicitation requirements. Offerors are encouraged to provide specific and concise information to validate all assertions. Offerors are advised to submit proposals that are complete, clear, and consistent in all aspects without the need for additional explanation or information. Offerors are cautioned against the use of general, vague, or unsubstantiated statements, which prevent concise proposal evaluations. Each factor will be evaluated on how well the response meets the requirements of the solicitation.

L-3.0 PROPOSAL CONTENT AND VOLUMES

Each volume of the proposal shall correspond with the requirements specified in the table below. Digital copy of the proposal shall be submitted as one (Zip) file with folders broken down by volume (e.g. VOLUME 1 & VOLUME 2).

Volume Number	Volume Title
1	PRICE
2	TECHNICAL
	Technical Factor 1 - Understanding the Work Item (WI) Package
	Subfactor1.1 Time Phased Sequencing Network (TPSN)
	Subfactor1.2 Problem Areas
	Subfactor 1.3 Engineering
	Subfactor 1.4 Material Availability
	Subfactor 1.5 Material Control and Storage
	Subfactor 1.6 Heavy Weather Plans
	Subfactor 1.7 Fire and Flooding Protection Plans
	Technical Factor 2 - Ability to Perform the WI Package
	Subfactor 2.1 Man-hour Chart
	Subfactor 2.2 Growth Absorption

	Subfactor 2.3 Facilities
	Subfactor 2.4 Berth, Approach, and Mooring
	Subfactor 2.5 Certifications
	Technical Factor 3 - Management Control and Quality Assurance
	Subfactor 3.1 Organization and Key Personnel
	Subfactor 3.2 Subcontractor Participation
	Subfactor 3.3 Quality Control Plan
	Subfactor 3.4 Hazardous Waste Management Plan
3	PAST PERFORMANCE
4	COVERPAGEANDOTHERSUBMITTALREQUIREMENTS

Offerors shall provide information by addressing each Factor/Subfactor in the format and sequence identified in the solicitation. Cost or pricing information shall only appear in the Price volume. Each volume shall be submitted in its own individual file. The technical volume shall not contain any identifying markings or information within or on any of the pages.

Each volume shall contain the following information:

- Title Page to include the following information:
 - Offeror's Name
 - Address
 - Point of Contact (POC) Name
 - E-mail address
 - RFP Number
 - Table of Content (Must provide sufficient detail to enable easy identification of important elements)

The following is a list of Section J attachments that the Offeror shall utilize to provide the required information:

- Attachment J-1 - Work Item Package
- Attachment J-2 - GFP
- Attachment J-3 - Price Summary Spreadsheet

- Attachment J-4 - Contractor Past Performance Data Sheet
- Attachment J-5 - Request for Clarification or Deviation
- Attachment J-6 - FAR 52.229-11 Tax on Certain Foreign Procurements
- Attachment J-7 MSC Ship Repair Facility Survey

NOTE: Pricing Information shall not appear anywhere in the proposal other than Volume 1.

THE GOVERNMENT RESERVES THE RIGHT TO REJECT ANY PROPOSAL THAT DOES NOT COMPLY WITH PROPOSAL PREPARATION/SUBMISSION INSTRUCTIONS CONTAINED IN SECTION L.

L-3.1 EVALUATION FACTOR PRICE (VOLUME 1)

- a. Proposed price for each Contract Line Item Number (CLIN) in Section B, Schedule of Supplies or Services, of the Standard Form 33 Solicitation document. The offeror shall insert the unit prices and total amount in Section B for the definite item (CLIN 0001) and each option items (CLIN 0003 - 0004). All prices stated shall be in NET US Dollars inclusive of all applicable charges.
- b. Proposed prices for each Work Item Number. The offeror shall submit proposed prices using Solicitation Attachment J-3, Contractor Price Breakdown, in MS Excel format. Each Work Item Number either must be priced or marked "Not Separately Priced (NSP)". Offerors shall identify all work items and CLINs with a total proposed price value of zero dollars in the cover letter along with rationale for the value of zero dollars.
- c. In accordance with the provision at 52.215-20 "Requirements for Certified cost or Pricing Data and Data Other Than Certified Cost or Pricing Data" of this solicitation, the Government may request certified cost or pricing data (as defined in the table 15-2 "Instructions for Submitting Cost /Price Proposals When Certified Cost or Pricing Data Are Required"), data other than certified cost or pricing data, and supporting attachments to be evaluated for adequacy. Upon request, the offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2, or demonstrate entitlement to an exemption.
- d. Time-and-Material Growth CLIN
 - i. For the purposes of this price evaluation only, offerors shall proposed a labor rate and material handling fee that will be applied to the following Government-provided labor hours and material plug-ins to calculate total price for CLIN 0005 and 0006 respectively, the T&M Growth CLINs.
 - 1. T&M Prime Labor Hours: 11,515 Hour
 - 2. T&M Material Costs: \$1,970,300.00
 - ii. Labor
 - 1. Consistent with Section H.8.0 and the provision 52.216-29 "Time-and-Materials/Labor Hour Proposal Requirements - Other Than Commercial Acquisition with Adequate Price Competition" and its alternate of this solicitation, offerors shall propose a single, fully-burdened labor rate for all prime labor to be applied to this availability. The fully burdened labor rate is a fixed hourly rate that includes all wages, overhead, other indirect costs, general and administrative expenses, Facilities Capital Cost of Money (FCCOM) and profit, as well as all costs associated with support functions and consumable materials as defined by H.8.0(e)(4).
 - 2. Offerors will calculate a labor price as follow, Proposed Prime Labor Rate x Government T&M Prime Labor Hours.

3. Offerors are advised that proposed labor pricing will be incorporated into Section H.8.0 and serve as a binding ceiling price for all growth work authorized under CLIN 0005 and 0006

iii. Materials

1. Offerors shall identify and propose a single material handling percentage (%) that will be applied to the actual, verifiable cost of materials, subcontractor labor/materials, and other direct costs purchased in support of T&M work under CLIN 0005 and 0006. This material handling percentage should be one rate based on complete allocable indirect costs in accordance with the Contractor's established accounting practices. The Contractor should not propose any additional form of overhead (including G&A), or profit based on material costs.

2. Offerors will calculate a material price for CLIN 0005 as follow, of the (Offeror's material handling percentage x Government T&M Material Costs, plus the Government T&M Material Costs).

3. Offerors are advised that proposed material handling percentage will be incorporated into Section H.8.0 at the time of award and serve as a binding ceiling price for all growth work authorized under CLIN 0006.

iv. Note, any requests for specific clarification or deviation/exception from T&M Growth CLIN proposal submission requirements must be submitted and handled through the Clarification and Deviations process specified in this Section L.

v. The evaluated price for CLIN 0005 and 0006 will be used to establish the final funded value of the T&M CLIN in the awarded contract.

vi. The Government may request certified cost or pricing data, data other than certified cost or pricing data, and supporting attachments to be evaluated for adequacy. Upon request, the offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

NON-PRICE EVALUATIONFACTOR-TECHNICAL (VOLUME 2)

Technical Factor 1 - Understanding the WI Package

Subfactor 1.1 TPSN

Demonstrate in detail, an understanding of the overall scope of work and the plan to accomplish that work by providing a TPSN, including milestones for each WI including Category "B" items. Include all milestones listed in WI 0013. In addition, develop a Critical Path Analysis by WI. The analysis shall clearly identify the primary Critical Path at each point of the availability. In addition, a secondary Critical Path may be presented.

Milestones shall include:

- a. MSC Onsite Management Team office start and end dates.
- b. Start of contract/ship arrival date.
- c. Crew move-off date.
- d. Dry-dock date and undock date from dry-dock.
- e. Completion of tanks gas-freeing date.
- f. Machinery Space Turnover date.

- g. Habitability and Galley and Mess Turnover date.
- h. Crew move aboard date
- i. Pre start-up meeting.
- j. Bridge turnover.
- k. Dock trial date.
- l. Sea trial date.
- m. Ship redelivery date.

List all awarded contracts and pending offers for same or overlapping period of performance as this availability. Explain the impact of those committed and pending projects to this availability and management of conflicts.

Identify whether it is achievable to complete all the Category "A" WIs within the period of performance. If it is not possible, provide a timetable that is determined to realistically complete all category "A" WIs.

Identify any challenges or obstacles for the coordination of WIs. Describe possible solutions for any challenge or obstacle identified.

Subfactor 1.2 Problem Areas

Identify any foreseen potential problem areas in accomplishing the work requirements (e.g., LLTM, open and inspect items, potential labor disputes, dry dock availability, exercising contract options) within the allotted contract period and propose solutions to those problems. If no problems are foreseen, state, "No problems are foreseen."

Subfactor 1.3 Engineering

The offeror shall demonstrate his understanding of the engineering support requirements (e.g., working drawings, tech/system manuals, selected record plans, inclining requirements, Trim and Stability booklet, and docking and undocking calculation, if required) of the work package.

Identify completely the extent of engineering services that you plan to provide for this work package.

Describe the methodology to be used for resolving technical engineering problems, including engineering/production interfaces.

Describe the liaison between production and any engineering or design subcontractors (e.g., whether or not specifically dedicated in-house individuals will be assigned liaison).

Describe how regulatory approvals will be obtained for applicable engineering drawings (i.e. use of Professional Engineer review, use of ABS review for ABS approval).

Submit brief but concise resumes of engineering personnel (in-house and subcontractor) assigned to this project.

Subfactor 1.4 Material Availability

Identify materials/sources of materials for any item whose material cost exceeds 25% of the total estimated work item cost.

Identify materials and sources for material costs that exceed \$10,000.00 for any single item. Do not list normal stock materials (e.g., fasteners, gaskets, weld rod).

Provide a separate listing of all brand name or equal items pursuant to the Brand Name or Equal provision of this solicitation (FAR 52.211-6). List should identify the product or material by work item number.

Subfactor 1.5 Material Control and Storage

Provide information on the location and size of all storage areas including those available for the receipt and inspection of material. Provide supporting data to demonstrate capability for compliance with the storage requirements identified in the statement of work.

Describe the system to be used for Material Control, providing data for the following areas:

1. Advanced CFM material ordering.
2. Receipt, inspection, and identification of GFM and CFM, including rotatable pool items.
3. Control of pilferable and sensitive material.
4. Control of damage and reporting system.
5. Turn-in material, including equipment shipped to subcontractors for work.
6. Scrap material and relative accounting system.
7. Ripout material which is to be reinstalled
8. Procedure for critical material decisions such as substitutions.
9. Temporary issue of storeroom repair parts to support overhaul/availability.

Show how the proposed system satisfies Production and QA Material Control requirements. Describe how material is distributed to the crafts.

Subfactor 1.6 Heavy Weather Plans

A Heavy Weather Plan shall be submitted IAW WI 0006. The heavy weather plan shall include a description of the protection arrangements available and the preventive measures that will be taken to ensure the safety of the ship from potential heavy weather conditions.

Subfactor 1.7 Fire and Flooding Protection Plans

A Fire and Flooding Protection Plan shall be submitted IAW WI 0016. The plan shall include a description of the ship repair facility fire protection and flooding protection measures/procedures, agreements with local fire and rescue organizations, firefighting response plan, flooding response plan, rescue response plan, medical emergency response plan, dewatering equipment available, alternative firefighting provisions in the case of disabled fixed firefighting systems and preventive measures that will be taken to ensure ship's safety during fire or flooding emergencies.

Technical Factor 2 - Ability to Perform the WI Package

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Subfactor 2.1 Man-hour Chart

Provide the supervisor/worker ratio for each specification item. Submit man-hour estimates by Hull, Machinery, and Electrical departments, with totals for each specification item and grand totals for all specification items in the format outlined below. The man-hour estimates provided shall reflect the actual man-hours planned to accomplish the work in the specification items.

MAN-HOUR ESTIMATES

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ITEM NO.	HULL/ STRUCTURAL PRIME/SUB	MACHINERY PRIME/SUB	ELECTRICAL PRIME/SUB	ELECTRONIC PRIME/SUB	OTHER PRIME/SUB	TOTAL PRIME/SUB	GRAND TOTAL

Provide one graphic presentation indicating each of the following items (only one graph to be provided)

Note: Left side of graph to indicate "man-days"; bottom of graph to indicate time from award date to redelivery of vessel in daily intervals.

- (a) Total number of personnel required to accomplish all work projected during the period of performance required by the solicitation.
- (b) Total number of personnel required to accomplish all shipyard work, all other work currently scheduled, and all other work projected during the period of performance required by this solicitation.
- (c) Total number of subcontractor personnel used to accomplish work projected during the period of performance required by this solicitation.
- (d) Projected number of contractor and subcontractor personnel required to accomplish the additional man-hours of growth work as outlined in this solicitation.

For all other work projected to be performed during this availability, list the name of the ship/barge/vessel, the period of performance. Explain if it will impact this availability and, if so, how.

Subfactor 2.2 Growth Absorption

Provide an estimate of the amount of additional work that can be absorbed without impact on the availability completion. Assume that most of the additional work is identified during the first 50% of the availability, that the work per trade (Hull, Machinery, and Electrical) is proportional to the work in the basic specifications, and that all material for such additional work is available within a reasonable time.

Justify the estimate of the amount of additional work that can be absorbed beyond Category "A" and "B" items.

Subfactor 2.3 Facilities

Complete the enclosed MSC Ship Repair Facility Survey Form (MSC Form 4330/26). Forms must be signed and dated. (See section J, Attachment J-7 for the form). Use additional sheets as necessary to give a complete description of your facilities. Note the following special instructions when completing the form.

- a. On sheet 2 of 5, the "Services Available" block should include only those services which are permanently installed. Temporary service capability should be listed on sheet 5 of 5.
- b. Photocopies of crane certification data shall be supplied.
- c. The following instructions apply to the required submittals list located on sheet 5 of 5.
 - 1) Submittal number 1: submit as instructed.
 - 2) Submittal number 2: submit as instructed.
 - 3) Submittal number 3: submit as instructed; list only capital equipment. Do not list portable hand-held tools.
 - 4) Submittal number 4: do not submit, covered elsewhere in RFP.
 - 5) Submittal number 5: do not submit, covered elsewhere in RFP.
 - 6) Submittal number 6: submit as instructed, do not list subcontractor locations.
 - 7) Submittal number 7: do not submit

Subfactor 2.4 Berth, Approach, and Mooring

- a. Submit a Berth Chart, Approach Chart, and Mooring Chart that complies with the requirements set forth in WI 0003 "Approach Berthing and Mooring."
- b. Mooring line details shall be presented with the offeror's proposal. A mooring calculation report shall be submitted based on UFC 4-159-3. The strength of mooring bitts, bollards, and fenders shall be provided. Ensure that the hydrographic's chart clearly reflects water depth along with the units of measurement and has a date and signature.

Subfactor 2.5 Certifications

For MSC:

a. Welding: The offeror shall submit current ABS/IACS member welder certifications utilizing the GMAW weld procedures. The contractor shall provide a listing of welders that will perform welding work and applicable weld certifications. Welder Certifications shall provide justification for the Currency of the specified Weld Procedures in accordance with American Welding Society D1.2 paragraph 3.23, ASME Code Sect IX for CUNI 90/10 (1.5-6.1mm), ASTM A335 P22 (1.5-17.48mm) welding process 141 with unlimited piping diameters, welder continuity /currency logs shall be submitted. The welder certifications shall be valid for the duration of the physical work occurring onboard the vessel. The offeror shall provide the policy establishing its condition found report (CFR) process and deckplate process to control their material traceability for use during this availability. Traceability shall include material certifications, ABS approved repair plans, weld filler material certifications, welder certifications and weld processes.

b. Paint: The offeror shall provide a list of all personnel performing paint work as well as current certifications that are valid for the duration of the physical work occurring onboard the vessel in the following:

- NACE/NBPI or FROSIO Level III Certified Coatings Inspector Certification OR submit a coatings inspector certification that covers the following minimum course topics:

- i. Corrosion and corrosion control
- ii. Inspection of corrosion
- iii. Chemical or detergent cleaning methods
- iv. Mechanical cleaning methods
- v. Abrasive blast cleaning
- vi. Water-jetting and alternative surface preparation methods
- vii. Surface preparation method selection
- viii. Coatings
- ix. Safety
- x. Coating application
- xi. Coating defects and failures
- xii. Specialty coatings and surfaces
- xiii. Coating inspector preparation
- xiv. Condition assessment
- xv. Coatings inspection instrument exercises and workshops
- xvi. Organizational Blasting Operations
- xvii. Spray Paint Certification

- xviii. Blaster Certification for Personnel Accomplishing Blasting Operations
- xix. Blasting Certification for personnel Accomplishing Ultra High Pressure Water Jetting Operations

For SRF:

The Government will evaluate whether or not the offeror demonstrated the ability to meet all requirements of the specifications and whether or not the provided documentation meets all the requirements of the specifications.

- a. Air Conditioning and Refrigeration (ACR) Certification
- b. Weld Procedure (WPS)
- c. Weld Record (WPQR)
- d. Filler Metal Control Document
- e. Non-Destructive Test (NDT) Procedure
- f. NDT Inspector Certified
- g. Written Practice 009-12
- h. Quality Procedures (QP)-1 Certified
- i. Instrument Calibration
- j. Coatings Application Product Summary (CAPS)
- k. Coating Inspector NBPI or NACE CIP 1 or SSPC PCI 2
- l. Material Certification Abrasive Blast
- m. Approved Inspector's List
- n. Crane Certifications

c. Safety: The offeror shall submit the following safety documentation for all prime and sub-contractor personnel that will be operating man-lifts, working at heights requiring fall protection and operating personnel lifts. All training and safety certificates shall be current and valid through the solicited period of performance.

- 1) Fall Protection Training Certifications (for personnel)
- 2) Man-Lift Operator Training Certifications (for personnel)
- 3) Personnel Lift Safety Certifications (for machines)

d. Non-Destructive Testing Inspection (NDT): The offeror shall submit documentation showing that all prime and sub-contractor personnel have satisfactorily met all requirements per ABS for NDT inspections and that they are current in certification. All training and NDT certificates shall be current and valid through the solicited period of performance.

- 1) Penetrant Testing (PT)
- 2) Ultrasonic Testing (UT)
- 3) Magnetic Particle Testing (MT)

Technical Factor 3 - Management Control and Quality Assurance

Subfactor 3.1 Organization and Key Personnel

Provide an organization chart of the key personnel who will be assigned for this availability. Include upper management, program managers, negotiators, estimators, scheduling personnel, engineering personnel, key production personnel by trade, the shipyard safety program organization, testing organization, the quality assurance organization, and contractor personnel responsible for each subcontractor being used. Identify the 2nd and /or swing shift yard managers/supervisors.

Include the name, title, percentage of time to be devoted to this availability, and years of experience in the ship repair industry for each key person.

Subfactor 3.2 Subcontractor Participation

Identify all proposed major (over \$25,000.00 aggregate) subcontractors and suppliers by work item. If none, state so. For all major subcontractors identified, advise whether the use of a second-tier subcontractor is proposed. If so, identify the proposed second-tier subcontractor and the specific work that it will be tasked to perform.

Identify all work items where work required is planned to be accomplished outside of the contractor's primary repair facility. Identify the facility /subcontractor planned to accomplish this work, the location where work will be performed, and contractor intentions for accomplishing regulatory body and MSCREP inspections at the off-site location.

Where a Technical Representative is required, identify each Technical Representative by source and by WI number. If none, state so. Technical Representatives shall have explicit OEM approval, training, certification and experience with the systems specified in the WI.

For Mandatory Usage of OEM's: The offeror shall provide a signed letter of intent from each OEM vendor specified as mandatory in the pertinent work items as reflected in Sections 7 and 8 of the individual work items. The letter of intent shall be on the OEM letterhead and shall state that the vendor intends to support the statement of work as a subcontractor of the perspective prime contractor (shipyard) during the period of performance. Bid pricing shall appropriately reflect usage of OEM's.

The Offeror shall provide a signed letter of intent, or an email from each OEM vendor specified as mandatory in the pertinent work items as reflected in Section(s) 7 and 8 of the individual work items. The letter of intent shall be on OEM letterhead and shall state that the vendor intends to support the statement of work (SOW) as a subcontractor of the prospective prime contractor (shipyard) during the period of performance (PoP). The work items that require OEM(s) to have all information are found in attachment J-1A

Subfactor 3.3 Quality Control Plan

Describe in detail the Quality Control (QC) Plan to be used for this availability. The description should address the method in which you will comply with WI 0004.

Submit a Preliminary "Schedule for Key Inspection Events" for review; to show full understanding of all inspections criteria, call outs, and checkpoints specified within the WI package.

Identify the individuals who will perform the QC function. Discuss other duties, if any, to be performed by QC personnel and the percentage of time that they are to perform other duties. Discuss the documentation of QC activity (e.g., logs, notebooks, records). Present the test failure recovery plan.

Subfactor 3.4 Hazardous Waste Management Plan

Identify key shipyard personnel associated with hazardous waste management including, but not limited to, personnel associated with employee training, hazardous waste identification, and manifest documentation.

Identify any subcontractors associated with removal, handling, and disposal of hazardous waste, including but not limited to, subcontractors responsible for removing, storing, transporting, recycling, reclaiming, or otherwise disposing of hazardous waste. All permits or other applicable credentials associated with safe and proper disposal of hazardous waste should be included. If a hazardous waste subcontractor is changed for any reason, the Hazardous Waste Management Plan shall be amended prior to the new subcontractor beginning work on the vessel.

Identify all local, state, and federal agencies associated with the disposal of hazardous waste.

Outline procedures used by the facility to accomplish removal, handling, storage, and disposal of hazardous waste IAW local, state, and federal requirements.

Describe all steps to be taken to reduce the volume and toxicity of hazardous waste generated during the performance of the contract. This is to include, but not be limited to a description of management of hazardous waste generation, process controls utilized to ensure that effective minimization techniques are maintained, and any technological resources available to reduce either the toxicity or the volume of hazardous waste.

Provide a copy of the facility's Hazardous Waste Spill Response Plan.

NON-PRICE EVALUATION FACTOR - PAST PERFORMANCE (VOLUME 3)

A. The offeror shall submit past performance information (PPI) using Attachment J-4 or provide CPARS reports for three (3) recent and relevant completed contracts, delivery order or substantially completed delivery orders or contract for repair/maintenance of US Navy vessels, other government military vessels, or similar commercial vessels where the offeror served as the prime contractor, no page limited.

- (1) "Recent" is defined as a contract in-progress or completed within the last five (5) years as of the solicitation release date.
- (2) "Relevant" is defined as a contract that is of similar scope and magnitude to the requirements as set forth in this solicitation.
 - a. Scope: Experience in the areas defined in the Solicitation as specified in Attachment J-1 (Work Item Specification Package SSU SN 27-001 and SING 003-27) and Work Item References. Emphasis will be placed on performance of work similar to that contained in the USS MIGUEL KEITH (ESB-5) Attachment J-1 (Work Item Specification Package SSU SN 27-001 and SING 003-27).
 - b. Magnitude: The measure of the similarity of the volume, dollar value and/or duration of the work actually performed under the Offeror's submitted contracts to the requirements of this solicitation.

B. Offerors shall provide a narrative for each past performance submission to explain what aspects of each contract are deemed relevant to scope and magnitude as related to the requirements of this solicitation. The narratives collectively shall not exceed 10 pages total.

An Offeror that does not have "recent" and "relevant" past performance to provide for consideration is requested to affirmatively state that it does not have recent and relevant past performance for the Government to consider.

COVER PAGE AND OTHER SUBMITTAL REQUIREMENTS (VOLUME4):

The cover letter, which shall not exceed three (3) pages, shall meet all the requirements of the "first page of the proposal" outlined in FAR 52.215-1(c) (2)(i-v). The representative who signs this letter must be authorized to contractually bind the Offeror. Submission of a signed cover letter to the Government constitutes agreement and acceptance of the terms and conditions of this RFP and all Amendments to this RFP in a Firm-Fixed Price contracting environment. The Offeror must explicitly acknowledge receipt of amendments to this RFP and related documentation numbered and dated. Offerors who alter the terms and conditions of this RFP, except for completing appropriate fill-in blocks and certifications, may be considered non-responsive and, thus, ineligible for award. If an Offeror takes an exception to any requirement of the proposal, the Offeror must note the exception in the Cover Letter. In addition to those requirements, the Offeror shall include the following in the cover letter:

- A. Offeror's name, address, and Point of Contact
- B. Solicitation/Request for Proposal (RFP) number
- C. Total Proposed Price
- D. Table of Contents (The table of contents must provide sufficient detail to enable easy location of important elements)
- E. The signed cover page and all pages of the Solicitation (SF-33), and any Amendments (SF-30).
- F. Completed Attachment J-6 FAR52.229.11: Tax on Certain Foreign Procurements-Notice and Representation: IRSFormW-14.
- G. Complete any representations and certifications for provisions in the solicitation that are not included in SAM. Complete block 12 on SF 33 if providing more time for acceptance of offer.
- H. Notice of any alterations to the solicitation (except for completing appropriate "fill-in" blocks and certifications). Note, however, that Offerors who alter the solicitation (except for completing appropriate "fill-in" blocks and certifications) may be considered unacceptable and thus ineligible for award.
- I. For any work item (WI) with a total dollar value of zero dollars proposed in Attachment J-3 (Pricing Workbook) provide an explanation as to why. In addition, if applicable:
- J. For any WI with a total value of zero labor hours proposed (prime and subcontractor combined) (although material is proposed), provide an explanation as to why.
- K. For any WI with a total dollar value of zero material proposed (prime and subcontractor combined) (although labor is proposed), provide an explanation as to why.

CLAUSES INCORPORATED BY REFERENCE:

- 52.211-1 Availability of Specifications Listed in the GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29. SEPT 2023
- 52.211-2 Availability of Defense Specifications, Standards, and Data Item Descriptions in the Acquisition Streamlining and Standardization Information System (ASSIST) website. SEPT 2023
- 52.215-1 Instructions to Offerors - Competitive Acquisition. NOV 2021
- 52.215-22 Limitations on Pass Through Charges - Identification of Subcontract Effort. OCT 2009
- 52.233-2 Service of Protest. SEPT 2006
- 252.215-7008 Only One Offer. DEC 2022

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.204-22	Alternative Line Item Proposal.	Jan 2017		

52.211-1	Availability of Specifications Listed in the GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29.	Sep 2023		
52.211-2	Availability of Defense Specifications, Standards, and Data Item Descriptions in the Acquisition Streamlining and Standardization Information System (ASSIST) website.	Sep 2023		
52.211-7	Alternatives to Government-Unique Standards.	Nov 1999		
52.215-1	Instructions to Offerors-Competitive Acquisition.	Nov 2021		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Alternate I)	Nov 2021	Alternate I	Oct 1997
52.215-16	Facilities Capital Cost of Money.	Jun 2003		
52.215-22	Limitations on Pass-Through Charges-Identification of Subcontract Effort.	Oct 2009		
52.222-56	Certification Regarding Trafficking in Persons Compliance Plan.	Oct 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Dec 2022		
252.217-7026	Identification of Sources of Supply.	Jan 2023		
252.225-7003	Report of Intended Performance Outside the United States	Jan 2025		
252.246-7005	Notice of Warranty Tracking of Serialized Items.	Mar 2016		

FAR Clauses Incorporated by Full Text

52.211-3 Availability of Specifications Not Listed in the GSA Index of Federal Specifications, Standards and Commercial Item Descriptions. (Jun 1988)

AVAILABILITY OF SPECIFICATIONS NOT LISTED IN THE GSA INDEX OF FEDERAL SPECIFICATIONS, STANDARDS AND COMMERCIAL ITEM DESCRIPTIONS (JUNE 1988)

The specifications cited in this solicitation may be obtained from:

(Activity) address) See item 10C on page 1.

=====

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(Telephone number) _____

(Person to be contacted) _____

The request should identify the solicitation number and the specification requested by date, title, and number, as cited in the solicitation.

(End of clause)

52.211-4 Availability for Examination of Specifications Not Listed in the GSA Index of Federal Specifications, Standards and Commercial Item Descriptions. (Jun 1988)

AVAILABILITY FOR EXAMINATION OF SPECIFICATIONS NOT LISTED IN THE GSA INDEX OF FEDERAL SPECIFICATIONS, STANDARDS AND COMMERCIAL ITEM DESCRIPTIONS (JUNE 1988)

(Activity) See item 10C on page 1.

(Complete Address) _____

=====

=====

(Telephone number) _____

(Person to be contacted) _____

(Time(s) for viewing) _____

(End of clause)

52.215-20 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Alternate IV) (Nov 2021) Alternate IV (Oct 2010)

Alternate IV (OCT 2010). As prescribed in 15.408 (I), replace the text of the basic provision with the following:

(a) Submission of certified cost or pricing data is not required.

(b) Provide data described below: _____[Insert description of the data and the format that are required, including the access to records necessary to permit an adequate evaluation of the proposed price in accordance with 15.403-3 .]

52.216-1 Type of Contract. (Apr 1984)

Type of Contract (Apr 1984)

The Government contemplates award of a Firm-Fixed-Price with a Time and Material CLIN contract resulting from this solicitation.

(End of provision)

52.233-2 Service of Protest. (Sep 2006)

SERVICE OF PROTEST (SEPT 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Ms. Natalie Simsnatalie.sims4.civ@us.navy.mil. [Contracting Officer designate the official or location where a protest may be served on the Contracting Officer.]

(b) The copy of any protest shall be received in the office designated above within oneday of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses - <https://www.acquisition.gov/browse/index/far/DFARS> Clauses - <https://www.acquisition.gov/dfars> [Insert one or more Internet addresses]

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (DFARS)[insert regulation name](48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer. (Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable ____ [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7010 **Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (DEVIATION 2024-O0007)** (May 2024) Deviation 2024-O0007 (Feb 2024)

REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA
(DEVIATION 2024-O0007)(FEB 2024)

(a) *Definitions.* As used in this provision-

“Market prices” means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

“Non-Government sales” means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

“Relevant sales data” means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

“Sufficient non-Government sales” means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by FAR 15.404-1(b)(2)(ii)(B).

“Uncertified cost data” means the subset of “data other than certified cost or pricing data” (see FAR 2.101) that relates to cost.

(b) *Exceptions from certified cost or pricing data.*

(1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) *Exception for price set by law or regulation - Identification of the law or regulation establishing the price offered.* If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) *Commercial item exception.* For a commercial item exception, the Offeror shall submit, at a minimum, information that is adequate for evaluating the reasonableness of the price for this acquisition, including prices at which the same item or similar items have been sold in the commercial market. Such information shall include-

(A) For items previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For items priced based on a catalog-

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(C) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit DoD to verify the accuracy of the description;

(D) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(E) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) *Requirements for certified cost or pricing data.* This acquisition is accomplished under the authority of section 890 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2019 (Pub. L. 115-232), as amended by section 825 of the NDAA for FY 2020 (Pub. L. 116-92), section 818 of the NDAA for FY 2023 (Pub. L. 117-263), and section 841 of the NDAA for FY 2024 (Pub. L. 118-31). The intent of this pilot program is to test the efficacy of basing price reasonableness determinations primarily on actual costs of performance for prior purchases of the same or similar products for the Department of Defense. If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) In lieu of providing complete cost or pricing data, as defined in FAR 2.101, the Offeror shall submit a subset of cost or pricing data and supporting attachments as follows: ____ *[Contracting Officer shall list the specific cost or pricing data deemed necessary to establish price reasonableness for this acquisition, and describe the required submission format for each type of data. At a minimum, the Contracting Officer shall identify the specific prior DoD purchases of the same or similar products for which the Offeror is required to submit the actual cost of performance. The Offeror is not required to submit cost or pricing data that is not listed within this provision. If the Contracting Officer finds that additional cost or pricing data are needed in order to determine that the price is fair and reasonable, the Contracting Officer shall issue an amendment to the solicitation, revising this paragraph as needed to require the submission of the additional data.]*

(2)(i) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, using the following language:

Certificate of Current Cost or Pricing Data for Acquisitions Accomplished under the Authority of Section 890 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2019, as amended by Section 825 of the NDAA for FY 2020, Section 818 of the NDAA for 2023, and Section 841 of the NDAA for FY 2024

This is to certify that, to the best of my knowledge and belief, the cost or pricing data required by the provision at 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data (DEVIATION 2024-O0007) of the Request for Proposal for this action, and submitted either actually or by specific identification in writing, to the Contracting Officer or to the Contracting Officer's Representative in support of ____* are accurate, complete, and current as of ____**. This certification includes the cost or pricing data supporting any advance agreements and forward pricing rate agreements between the Offeror and the Government that are part of the proposal.

Firm ____

Signature ____

Name ____

Title ____

Date of execution*** ____

*Identify the proposal involved, giving the appropriate identifying number (e.g., RFP No.).

**Insert the day, month, and year when price negotiations were concluded and price agreement was reached or, if applicable, an earlier date agreed upon between the parties that is as close as practicable to the date of agreement on price.

***Insert the day, month, and year of signing, which should be as close as practicable to the date when the price negotiations were concluded and the contract price was agreed to.

(ii) The certificate does not constitute a representation as to the accuracy of the Offeror's judgment on the estimate of future costs or projections. It applies to the data upon which the judgment or estimate was based. This distinction between fact and judgment should be clearly understood. With respect to the certified cost or pricing data required by paragraphs (c)(1) or (e) of this provision (as revised by solicitation amendment, if applicable), if the Offeror had information reasonably available at the time of agreement showing that the negotiated price was not based on accurate, complete, and current data, the Offeror's responsibility is not limited by any lack of personal knowledge of the information on the part of its negotiators.

(iii) The Contracting Officer and Offeror are encouraged to reach a prior agreement on criteria for establishing closing or cutoff dates when appropriate in order to minimize delays associated with proposal updates. Closing or cutoff dates applicable to the certified cost or pricing data required by paragraphs (c)(1) or (e) of this provision should be included as part of the data submitted with the proposal and, before agreement on price, data should be updated by the contractor to the latest closing or cutoff dates for which the data are available. Use of cutoff dates coinciding with reports is acceptable, as certain data may not be reasonably available before normal periodic closing dates (e.g., actual indirect costs). Data within the Offeror's or a subcontractor's organization on matters significant to contractor management and to the Government will be treated as reasonably available, if that data was required to be submitted by paragraph (c)(1) or (e) of this provision. What is significant depends upon the circumstances of each acquisition.

(iv) Possession of a Certificate of Current Cost or Pricing Data is not a substitute for examining and analyzing the Offeror's proposal.

(v) If certified cost or pricing data are requested by the Government and submitted by the Offeror, but an exception is later found to apply, the data shall not be considered certified cost or pricing data and shall not be certified in accordance with this subsection.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-1(c)(1).

(d) Requirements for data other than certified cost or pricing data.

(1) Data other than certified cost or pricing data submitted in accordance with this provision shall include all data necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in DFARS 215.402(a)(i) and 215.404-1(b).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) The Offeror shall provide information described as follows: _____ [Insert description of the data and the format that are required, including access to records necessary to permit an adequate evaluation of the proposed price in accordance with FAR 15.403-3].

(4) Within 10 days of a written request from the Contracting Officer for additional information to support proposal analysis, the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(5) Subcontract price evaluation.

(i) The Offeror shall obtain from subcontractors the minimum information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost information may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary—

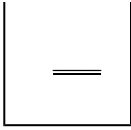
(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented, but excluding paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(e) Subcontracts.

(1) For subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4 to which the authority of the Section 890 pilot has been flowed down, in lieu of the requirements in paragraphs (a) and (b) of the clause at 52.215-12, Subcontractor Certified Cost or Pricing Data, of this solicitation, the Offeror shall require the subcontractor to submit a subset of cost or pricing data (actually or by specific identification in writing) as follows:

(i) _____



[Contracting Officer shall add paragraphs as necessary to identify each first-tier subcontract to which the authority of the Section 890 pilot has been flowed down, and the specific certified cost or pricing data required for each subcontract. Contracting Officer shall list the specific cost or pricing data deemed necessary to determine that the price is fair and reasonable for each subcontract, and describe the required submission format for each type of data. The type and extent of data required may differ based on the dollar value of the subcontract proposal, or other appropriate considerations. At a minimum, the Contracting Officer shall identify the specific prior subcontracts awarded in support of the DoD purchases of the same or similar products for which the subcontractor is required to submit the actual cost of performance. The Contracting Officer shall specify whether the authority of the Section 890 pilot is further flowed down to any lower-tier subcontract pertaining to each first-tier subcontract. Where the pilot authority is flowed down to lower-tier subcontracts, the Contracting Officer shall describe the specific certified cost or pricing data that is to be provided by each affected lower-tier subcontractor. The subcontractor and lower tier subcontractors to which the pilot authority is flowed down are not required to submit certified cost or pricing data that is not listed within this provision. If the Contracting Officer finds that additional certified cost or pricing data are needed in order to determine that the price is fair and reasonable, the Contracting Officer shall issue an amendment to the solicitation, revising this paragraph as needed to require the submission of the additional data.]

(ii) In the event a subcontractor denies the Offeror access to the data described in paragraph (e)(1)(i) of this provision, the data may be provided directly to the Contracting Officer.

(iii) If a subcontractor is unable to provide the extent of historical actual cost experience required by paragraph (e)(1)(i), then the Offeror shall require the subcontractor to provide certified cost or pricing data in accordance with paragraph (e)(2) of this clause.

(iv) The Offeror shall require the subcontractor to certify in substantially the form prescribed in paragraph (c)(2) of this provision that, to the best of its knowledge and belief, the data submitted under paragraph (e)(1)(i) of this provision were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract.

(2) For subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4 to which the authority of the Section 890 pilot has not been flowed down, the Offeror shall require the subcontractor to provide certified cost or pricing data in accordance with the clause at 52.215-12, Subcontractor Certified Cost or Pricing Data, of this solicitation and shall require the subcontractor to certify in substantially the form prescribed in FAR 15.406-2 that, to the best of its knowledge and belief, the data submitted under paragraph (a) of the clause at 52.215-12 were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract.

(End of provision)

Section M - Evaluation Factors for Award

M-1.0 GENERAL

Award will be made to the responsible offeror whose proposal offers the lowest evaluated price and for which non-price factor is rated as Acceptable in accordance with the established criteria in the solicitation. The Government intends to award one contract as a result of this solicitation. Taking exception to any terms or conditions of this RFP outside of the process for Clarifications and Deviations may deem the offeror unacceptable.

The Government intends to evaluate proposals and award based on initial proposals without conducting discussions with Offerors but reserves the right to conduct discussion if determined by the Contracting Officer to be necessary (FAR 52.215-1(f)(4)). Therefore, each initial offer should contain the offeror's best technical and price terms. If discussion is decided, the Contracting Officer will establish a competitive range to limit the number of proposals for discussion to the greatest number that will permit an efficient competition among the most highly rated proposals.

The Contracting Officer will promptly notify offerors of the decision to eliminate their proposals from the competitive range, whereupon an offeror can request and receive a debriefing in accordance with FAR 15.505. The Contracting Officer will notify unsuccessful offerors in the competitive range of the source selection decision in accordance with FAR 15.506. Upon such notification, unsuccessful offerors may request and receive a debriefing. Any offeror requesting a debriefing must make the request in accordance with the requirements of FAR 15.506.

Offerors are advised that the Government will not evaluate any proposal information not contained within the body of the proposal, with the exception of the Government's reservation of rights to independently research past performance.

M-2.0 BASIS OF AWARD

Evaluation of an Offeror's proposal will be based on the information presented in the written proposal along with any input obtained from outside sources relevant to past performance. Proposals that are unachievable in terms of technical or schedule commitments may be deemed to be reflective of an inherent lack of technical competence, or indicative of a failure to comprehend the complexity and risks of the proposed work, and may therefore be determined to be unacceptable or ineligible for award.

All proposals will be evaluated for compliance with the terms, conditions, and requirements set forth in the solicitation. Failure to address each of the areas identified in Section L will impact the resulting evaluation ratings and a deficiency or lack of responses to factors, sub-factors, elements, or sub-elements may be used as a basis for eliminating a proposal from further consideration.

For the Technical factor, a Technical Rating will be assigned. The Technical Rating reflects whether the proposal meets or does not meet the minimum requirements. Offerors are advised that during the evaluation process, a technical factor with an "Unacceptable" Rating may result in the entire proposal being found unacceptable and eliminated from the competition.

Under Past Performance, the Government will evaluate recent performance to determine how well an offeror has performed work similar to the work required by the solicitation. After evaluating the Offeror's past performance information, a Performance Confidence Assessment Rating of Acceptable or Unacceptable will be assigned. More relevant past performance will typically be a stronger predictor of future success and have more influence on the Performance Confidence Assessment Rating than past performance of lesser relevance. In the case of an Offeror without a record of relevant past performance, the Offeror will receive a Performance Confidence Assessment Rating of "Unknown Confidence (Neutral)" which is considered a "Neutral" rating.

M-3.0 EVALUATION FACTORS

1) PRICE EVALUATION FACTOR - Lowest Total Price

The offeror's proposed price will be evaluated for reasonableness based on price analysis in accordance with FAR 15.404-1. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

2) NON-PRICE EVALUATION FACTOR - Technical

TECHNICAL FACTOR 1 - UNDERSTANDING THE WORK PACKAGE

The Government will evaluate the adequacy of the offeror's understanding of approach to, and ability to meet the solicitation requirements based on the information provided as required by Section L under the following sub-factors.

- 1.1 TPSN
- 1.2 Problem Areas
- 1.3 Engineering
- 1.4 Material Availability
- 1.5 Material Control and Storage
- 1.6 Heavy Weather Plans
- 1.7 Fire and Flooding Protection Plans

TECHNICAL FACTOR 2 - ABILITY TO PERFORM THE WI PACKAGE

The Government will evaluate the adequacy of the offeror's understanding of approach to, and ability to meet the solicitation requirements based on the information provided as required by Section L under the following sub-factors.

- 2.1 Man-hour Chart
- 2.2 Growth Absorption
- 2.3 Facilities
- 2.4 Berth, Approach, and Mooring
- 2.5 Certifications

TECHNICAL FACTOR 3 - MANAGEMENT CONTROL AND QUALITY ASSURANCE

The Government will evaluate the adequacy of the offeror's understanding of approach to, and ability to meet the solicitation requirements based on the information provided as required by Section L under the following sub-factors.

- 3.1 Organization and Key Personnel
- 3.2 Subcontractor Participation
- 3.3 Quality Control Plan
- 3.4 Hazardous Waste Management Plan

The Government will evaluate the offeror's proposal against the requirements to determine whether the proposal is acceptable or unacceptable using the ratings and descriptions below.

Rating	Description
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Acceptable	Proposal meets the requirements of the solicitation.
Unacceptable	Proposal does not meet the requirements of the solicitation.

3) NON-PRICE EVALUATION FACTOR - Past Performance

A. Evaluation

1. The Government will evaluate each offeror's past performance based on the information submitted by the offeror, but, at the Government's discretion, may also consider information in the Government's possession and information from other sources. Only recent and relevant past performance information will be evaluated. A recent contract is one that is currently ongoing or has been completed within the last five (5) years from the solicitation release date. A relevant contract is defined as work of similar scope and magnitude performed on US Navy vessels, other government military vessels, or similar commercial vessels where the offeror served as the prime contractor. If an Offeror submits more than three recent and relevant efforts, the Government will evaluate no more than three (3), which will be selected at random by the Government.

2. If Offerors that have no record of past performance (i.e., new businesses) submit a statement to that effect and the Government has no information available regarding the offeror's past performance, that offeror will be determined to have an unknown performance record. In the case of an Offeror for whom information on recent, relevant past performance is so sparse that no meaningful past performance rating can be reasonably assigned, the Offeror will be determined to have an unknown performance record.

3. The Government will consider quality information in the following areas when evaluating an offeror's recent and relevant past performance.

- (a) Quality of Service (technical compliance with contract requirements);
- (b) Timeliness of performance (ability to meet schedule); and
- (c) Management (offeror's general businesslike concern for the interest of the customer).

4. Quality information regarding the Offeror's recent and relevant past performance will be used to make a subjective determination whether the Government has a reasonable expectation that the Offeror will successfully perform the required effort. IAW FAR 15.305(a)(2), the government may consider, among other things, currency and relevance of the quality information, source of the information, context of the data, and general trends in contractor's performance.

5. PPI utilized in the evaluation will include data obtained from the Past Performance data sheets (Attachment J-4). Contractor references that cannot be contacted will not be considered. Government evaluators may use various federal, state, and local past performance databases including, but not limited to, Past Performance Information Retrieval System (PPIRS), Contractor Performance Assessment Reporting System (CPARS), Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontracting Reporting System (eSRS), and Defense Logistic Agency's (DLA's) Mechanization of Contract Administration Services (MOCAS) system. The Government may research offeror's performance on any federal, state, local, and commercial contract that is known to the Government, but not included on a submitted "Past Performance Data Sheet." Additionally, interviews with Program Managers, Contracting Officers, and the Defense Contract Management Agency may be utilized.

RATING

The Past Performance factor will be rated on an Acceptable/Unacceptable basis using the following rating criteria:

Rating	Description
Acceptable	Based on the Offeror's performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort, or the Offeror's performance record is unknown.

Unacceptable	Based on the Offeror's performance record, the Government does not have a reasonable expectation that the offeror will be able to successfully perform the required effort.
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An offeror who receives a rating of "Unacceptable" based on adverse past performance information to which the offeror has had an opportunity to respond will not be further considered for award.

4) COVER PAGE AND OTHER SUBMITTAL REQUIREMENTS

Responsibility: To be eligible for award, Offerors must meet the Contractor Qualifications standards in FAR subpart 9.1, and shall provide relevant documentation necessary to support the Contracting Officer's determination of responsibility. The Contracting Officer may request additional documentation necessary to determine an Offeror's responsibility pursuant to FAR 9.105-1(a). Such a request shall not be considered "discussions."

The Contracting Officer may either make a responsibility determination without requesting any information from an offeror or require the offeror provide information to substantiate that it satisfies the general responsibility standards of FAR 9.104-1. The particular information requested from an offeror will be specific to that offeror. The Contracting Officer may consider an offeror's inability to promptly respond to a request for information as an indication the offeror is nonresponsible since FAR 9.103(c) obligates prospective contractors to affirmatively demonstrate their responsibility.

When the Contracting Officer requests responsibility information, the Contracting Officers request, the offeror's response, and all related communications between the government and offeror are solely for the purpose of determining whether the offeror is responsible. These communications will not constitute discussions within the meaning of FAR 15.306 since the offeror will not be given an opportunity to revise its proposal.

IMPORTANT:

1. In the event the country in which the lowest priced, technically acceptable offeror's shipyard is located prohibits U.S. personnel from entering the country at the time of award or 45 calendar days before commencement of period of performance whichever is sooner, the U.S. Government reserves the right to award to the lowest price, technically acceptable offeror whose country does not prohibit U.S. personnel entry.
2. The offeror's proposed port facility must have an active port assessment completed by the U.S. Navy in order to be eligible for award. In the event the lowest priced, technically acceptable offeror's proposed port does not have an active port assessment at the time of award or 45 calendar days before commencement of period of performance, whichever is sooner, the U.S. Government reserves the right to award to the lowest price, technically acceptable offeror whose proposed port has an active port assessment.
3. Verification of Accounting Systems. To support the Government's responsibility determination, the Government may require a pre-award survey of an offeror's accounting system. Offerors must be prepared to support various requests from Defense Contract Audit Agency (DCAA) for verification of an accounting system adequate to support Time and Material CLIN as stated in this solicitation, for determining costs applicable to this contract in accordance with DFARS Subpart 242.75. Offerors must be prepared to support this survey by providing access to relevant documentation (e.g., timekeeping policies, labor distribution procedures, billing procedures) and key financial personnel.

M-4.0 SOURCE SELECTION

The source selection will be conducted in accordance with the Federal Acquisition Regulation (FAR), Defense Federal Acquisition Regulation Supplement (DFARS), Navy Marine Corps Acquisition Regulation Supplement (NMCARS), NAVSUP Contracts Handbook, internal NAVSUP guidance and procedures as well as any other applicable regulation or policy. These policy and regulations provide for checks and balance, and independent evaluation of proposals to ensure integrity is maintained throughout the process. Offerors are encouraged to consult the regulations and guidance online.

The Government intends to make an award to the responsible offeror who submits a technically acceptable proposal that conforms to the requirements of the solicitation, and the contracting officer has no reason to believe would be likely to offer other than fair and reasonable pricing.

The Government intends to make an award based on initial proposals; however, the Government reserves the right to enter into discussions. If discussions are applicable, all Offerors selected to participate in discussions shall be advised of deficiencies or significant weaknesses that have been identified during the evaluation, and shall be given an opportunity to submit a final proposal revision (FPR). The evaluation criteria set forth under Section M, shall still be the basis for evaluation of the FPRs.

Pre-award notification during the source selection process shall be provided IAW FAR Subpart 15.5.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.217-4	Evaluation of Options Exercised at Time of Contract Award. (Deviation)	Feb 2026		
52.217-5	Evaluation of Options.	Jul 1990		
52.247-50	No Evaluation of Transportation Costs.	Apr 1984		

FAR Clauses Incorporated by Full Text

52.225-17 Evaluation of Foreign Currency Offers. (Feb 2000)

Evaluation of Foreign Currency Offers (Feb 2000)

If the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency using 1.26 in effect as follows:

- (a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.
 - (b) For acquisitions conducted using negotiation procedures-
 - (1) On the date specified for receipt of offers, if award is based on initial offers; otherwise
 - (2) On the date specified for receipt of proposal revisions.
- (End of provision)